Supreme Court, U.S.
FILED
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No. 97-1230

In The

Supreme Court of the United States

October Term, 1997

CITY OF WEST COVINA,

Petitioner,

vs.

LAWRENCE PERKINS; CLARA PERKINS; APRIL PERKINS, a minor, by and through LAWRENCE PERKINS,

Respondents.

On Writ Of Certiorari To The United States Court Of Appeals For The Ninth Circuit

JOINT APPENDIX

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Petition For Certiorari Filed January 20, 1998
Certiorari Granted May 4, 1998

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CHRONOLOGICAL LIST OF RELEVANT DOCKET ENTRIES

Nov. 19, 1993 – Plaintiffs' Complaint filed in U.S. District Court for Central District of California, Los Angeles County Division

Dec. 28, 1993 – Defendants' Answer to Complaint filed in U.S. District Court for Central District of California, Los Angeles County Division

March 15, 1994 – Defendants' Motion for Summary Judgment filed in U.S. District Court for Central District of California, Los Angeles County Division

March 15, 1994 – Defendants' Statement of Uncontroverted Facts and Conclusions of Law filed in U.S. District Court for Central District of California, Los Angeles County Division

March 28, 1994 – Plaintiffs' Opposition to Defendants' Motion for Summary Judgment filed in U.S. District Court for Central District of California, Los Angeles County Division

April 27, 1994 – Defendants' Supplemental Memorandum Re Defendants' Motion for Summary Judgment filed in U.S. District Court for Central District of California, Los Angeles County Division

May 10, 1994 – Order Granting Defendants' Motion for Summary Judgment and Denying Plaintiffs' Motion for Summary Judgment filed in U.S. District Court for Central District of California, Los Angeles County Division

June 9, 1994 – Plaintiffs' Notice of Motion and Motion to Amend Complaint or in the Alternative to Include the Claim in the Pretrial Conference Order filed in U.S. District Court for Central District of California, Los Angeles County Division

July 6, 1994 – Order Granting West Covina's Motion for Summary Judgment filed in U.S. District Court for Central District of California, Los Angeles County Division

Aug. 3, 1994 – Judgment ordered in favor of all defendants filed in U.S. District Court for Central District of California, Los Angeles County Division

Aug. 31, 1994 – Plaintiffs' Second Notice of Appeal filed in U.S. District Court for Central District of California, Los Angeles County Division

April 30, 1996 – Order of Ninth Circuit remanding to District Court for clarification of status of bifurcated claim that West Covina violated due process filed in the Ninth Circuit Court of Appeals

June 12, 1996 – Defendants' Notice of Motion and Motion for Summary Judgment filed in U.S. District Court for Central District of California, Los Angeles County Division

June 17, 1996 – Plaintiffs' Opposition to Motion for Summary Judgment; Motion for Summary Judgment filed in U.S. District Court for Central District of California, Los Angeles County Division

June 25, 1996 – Order Granting Defendants' Motion for Summary Judgment filed in U.S. District Court for

Central District of California, Los Angeles County Division

Oct. 22, 1997 – Order Denying Petition for Rehearing and Rejecting Suggestion for Rehearing En Banc filed in the Ninth Circuit Court of Appeals

May 9, 1997 – Opinion of the Court of Appeals for the Ninth Circuit affirming District Court's grant of summary judgment to individual defendants and reversing summary judgment in favor of West Covina filed in the Ninth Circuit Court of Appeals

May 4, 1998 – Order of the United States Supreme Court granting the Petition for Certiorari and granting Amicus permission to file brief in support of the petition

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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	Case No. CV93-7084 SVW (CTx) COMPLAINT FOR VIOLATION OF CIVIL RIGHTS (Filed Nov. 19, 1993)

Plaintiffs allege:

JURISDICTION AND VENUE

1. This action arises under the United States Constitution and the Civil Rights Act of 1871 [42 U.S.C. Section 1983] as hereinafter more fully appears. This court has jurisdiction under and by virtue of 28 U.S.C. Sections 1343 and 1331.

2. Venue is founded in this judicial district upon 28 U.S.C.

Section 1391 as the acts complained of ar[e] in this district.

PARTIES

3. At all times herein mentioned, plaintiffs, Lawrence Perkins ("Lawrence"), Clara Perkins ("Clara") and April Perkins ("April"), were, and now are, citizens of the United States, and reside within the jurisdiction of the United States District Court for the Central District of California.

4. At all times herein mentioned, defendant Detective Ferrari ("Ferrari") was duly appointed and acting as an officer for the City of West Covina, employed as such by the West Covina Police Department, and was at all material times acting under color of state law, and as the employee, agent and representative of every other defendant.

5. At all times herein mentioned, defendant Detective Melnyk ("Melnyk") was duly appointed and acting as an officer for the City of West Covina, employed as

such by the West Covina Police Department, and was at all material times acting under color of state law, and as the employee, agent and representative of every other defendant.

6. At all times herein mentioned, defendant Lieutenant Schimanski ("Schimanski") was duly appointed and acting as an officer for the City of West Covina, employed as such by the West Covina Police Department, and was at all material times acting under color of state law, and as the employee, agent and representative of every other defendant.

7. At all times herein mentioned, defendants City of West Covina and the County of Los Angeles were and are political subdivisions of the State of California existing as such under the laws of the State of California and the United States.

8. The true names or capacities of defendant Does 1 through 50 are unknown to plaintiffs who therefore sues such defendants by such fictitious names. Each defendant, Does 1 through 50, is responsible in some manner for the events herein referred to, and caused injuries and damages proximately thereby to plaintiffs, as herein alleged. Further, each of the Doe defendants was acting under color of state law as that term is defined in 42 U.S.C. Section 1983. Plaintiffs will amend this complaint to insert the true names and capacities of the fictitiously named defendants when ascertained.

FACTUAL ALLEGATIONS

9. On or about May 21, 1993, at approximately 9:00 a.m., plaintiffs lived at 531 Balham, La Puente, California, in the County of Los Angeles.

10. At said date, time and place, the defendant police officers and certain Does broke into the residence damaging the front door. There may have been no knock notice or other similar notice prior to the police entry by law enforcement.

11. The defendant deputies proceeded to search plaintiffs' house without such notice and without reasonable or probable cause. The deputies ransacked the house, destroying property, dumping and scattering plaintiffs' personal effects, and damaging and breaking items.

12. Further, items including money were unlawfully taken from the home and never returned to plaintiff's notwithstanding plaintiffs' repeated requests.

13. Plaintiffs in no way consented to defendants' conduct, but have protested the same. Defendants, and each of them, had no valid arrest or search warrant, or probable or legal cause to arrest the plaintiffs or search their home.

14. By reason of the above-described acts and omissions of defendants, and each of them, plaintiffs sustained injuries, including, but not limited to, humiliation and indignities, and physical, mental and emotional pain and suffering all to their damage in an amount to be ascertained. Plaintiffs have thus far incurred medical/psychological expenses in a sum to be ascertained.

15. The aforementioned acts of defendants were willful, wanton, malicious, oppressive, and done with reckless indifference to and/or callous disregard for plaintiffs' rights and justify the awarding of exemplary and punitive damages in an amount to be ascertained according to proof at the time of trial.

16. By reason of the above-described acts and omissions of defendants, plaintiffs were required to retain an attorney to institute, prosecute and render legal assistance to plaintiffs in the within action so that they might vindicate the loss and impairment of their rights. By reason thereof, plaintiffs request payment by defendants of a reasonable sum for attorney's fees pursuant to 42 U.S.C. Section 1988.

COUNT ONE

(Against Defendants Ferrari, Melnyk, Schimanski and Does 1 through 40, For Violation Of Civil Rights)

17. Plaintiffs hereby incorporate and reallege Paragraphs 1 through 16 hereat as though fully set forth at this place.

18. By reason of defendants' conduct, plaintiffs were deprived of rights, privileges, and immunities secured to them by the Fourth and Fourteenth Amendments of the Constitution of the United States and laws enacted thereunder.

19. The arbitrary intrusion by defendants, and each of them, into the security of plaintiffs' privacy was in violation of thier due process and liberty interests and not authorized by law, and was, therefore, in violation of

plaintiffs' Fourth and Fourteenth Amendment rights. Therefore, the individual defendants, and each of them, are liable to plaintiffs under 42 U.S.C. Section 1983.

COUNT TWO

(Against Defendants Ferrari, Melnyk, Schimanski and Does 1 through 40 For Violation of Civil Rights)

20. Plaintiffs hereby incorporate and reallege paragraphs 1 through 16 as though fully set forth at this place.

21. By reason of defendants' conduct, plaintiffs were deprived of rights, privileges, and immunities secured to them by the Fourth and Fourteenth Amendments of the Constitution of the United States and law enacted thereunder.

22. The defendants purportedly obtained a search warrant for the residence at 531 Balham, La Puente, California. Defendants had no probable or reasonable cause to request a search warrant. Plaintiffs are informed and believe and allege thereon that the affidavit for the search warrant contained material misrepresentations and/or omissions. Further, defendants may have given no knock notice, or other similar notice prior to searching, and the search conducted by defendants far exceeded the scope authorized under the warrant, and no warrant was shown to the plaintiffs, all of which was unnecessary, unreasonable and excessive and was, therefore, in violation of plaintiffs' Fourth Amendment rights. Therefore, the individual defendants, and each of them, are liable to plaintiffs under 42 U.S.C. Section 1983.

COUNT THREE

Against The City of West Covina, The County of Los Angeles and Does 41 through 50, For Violation Of Civil Rights)

23. Plaintiffs hereby incorporate and reallege Paragraphs 1 through 14 and 16, hereat as though fully set forth at this place.

24. Defendants, the City of West Covina, The County of Los Angeles, and Does 41 through 50, knowingly, with gross negligence, and in deliberate indifference to the Constitutional rights of citizens, maintain and permit an official policy and custom of permitting the occurrence of the types of wrongs set forth hereinabove and hereafter.

25. These policies and customs include, but are not limited to, the deliberately indifferent training of its officers in the execution of investigations, the execution of searches pursuant to search warrants, the procurement of search warrants and the failure to train officers in the prevention of fellow officers from violating the rights of citizens. These policies and customs also include the express and/or tacit encouragement of arrests without probable cause, the procurement of unlawful search warrants, unlawful searches pursuant to such warrants, the ratification of police misconduct and the failure to conduct adequate investigations of police misconduct such that future violations do not occur. Plaintiffs are informed and believe, and thereon allege, that the customs and policies were the moving force behind the violations of plaintiffs' rights. Based upon the principles set forth in *Monell v. New York City Dept. of Social Services*, the City of

West Convina, and the County of Los Angeles are liable for all of the injuries sustained by plaintiffs as set forth above.

WHEREFORE, plaintiffs request judgment as follows against defendants, and each of them:

1. That defendants be required to pay plaintiffs general damages including pain and suffering and emotional distress, in a sum to be ascertained;

2. That defendants be required to pay plaintiffs special damages, including but not limited to, lost wages, medical expenses and attorney fees in a sum to be ascertained;

3. That defendants, except the municipal defendants, be required to pay plaintiffs exemplary and punitive damages in a sum to be ascertained;

4. That defendants be required to pay plaintiffs' attorney's fees pursuant to Section 1988 of Title 42 of the United States Code;

5. That defendants be required to pay plaintiffs the costs of suit herein incurred; and

6. That plaintiffs have such other and further relief as the court may deem just and proper.

DATED: November 11, 1993

KLASS, HELMAN & ROSS

By /s/ Patrick S. Smith
PATRICK S. SMITH
Attorneys for Plaintiffs

NOTICE OF RIGHT TO CONSENT TO DISPOSITION OF A CIVIL CASE BY A UNITED STATES MAGISTRATE

PURSUANT TO GENERAL ORDER 194-G, NOTICE MUST BE SERVED WITH THE SUMMONS AND COMPLAINT ON ALL DEFENDANTS. ADDITIONAL COPIES OF THIS NOTICE HAVE BEEN PROVIDED FOR THAT PURPOSE.

In accordance with the provisions of 28 U.S.C. § 636(c), you are hereby notified that the full-time United States Magistrates of this District Court, in addition to their other duties, may, upon the consent of all parties to their civil case, conduct any and all proceedings in a civil case, including a jury or non-jury trial, and order the entry of a final judgment. Copies of appropriate consent forms for this purpose (Form number CV-II) are available from the Clerk of Court.

Your opportunity to have your case disposed of by a Magistrate is subject to the calendar requirements of the court. Accordingly, the district Judge to whom your case is assigned must approve the reference of the case to a Magistrate for disposition.

You should be aware that your decision to consent, or not to consent, to the referral of your case to a United States Magistrate for disposition is entirely voluntary and should be communicated solely to the clerk of the district court by submitting form number CV-11 after it has been completed. Only if all parties to the case consent to the reference to a Magistrate will either the Judge or Magistrate to whom the case has been assigned be informed of your decision.

The parties may stipulate to the designation of a specific Magistrate to conduct all further proceedings. A space is provided on the consent form for use by parties if they desire to stipulate to a specific Magistrate.

CV-20a 8/85 NOTICE OF G.O. 194-G

NOTE: The parties *may not* stipulate to the designation of a specific Magistrate in a case which has already been assigned to a Magistrate for a report and recommendation. If the case has been so assigned, it shall remain assigned to the assigned Magistrate. (General Order 194-G, 6.6.04.01).

Any appeal from a judgment of the Magistrate shall be taken to the United States Court of Appeal in the same manner as an appeal from any other judgment of the district court in accordance with 28 U.S.C. § 636(c)(3). In the alternative, in accordance with 28 U.S.C. § 636(c)(4), at the time of the reference to a Magistrate, the parties may further consent to appeal on the record to a judge of the district court in the same manner as on an appeal from a judgment of the district court to a court of appeals, subject to the limitation contained in 28 U.S.C. § 636(c)(5) which provides that cases appealed under 28 U.S.C. § 636(c)(4) "may be reviewed by the appropriate United States Court of Appeals upon petition for leave to appeal by a party stating specific objections to the judgment."

Form number CV-11 provides an opportunity for parties to designate their election of appellate alternatives under 28 U.S.C. § 636(c)(3) or 28 U.S.C. § 636(c)(4).

CLERK, UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

NOTICE OF ASSIGNMENT TO UNITED STATES MAGISTRATE JUDGE

Pursuant to the Local Rules Governing Duties of Magistrate Judges, Magistrate Judge Carolyn Turchin has been designated to hear discovery motions in the within action at the discretion of the assigned District Judge.

Upon the filing of a discovery motion, the motion will be presented to the United States District Judge for consideration and may hereafter be referred to the Magistrate Judge for hearing and determination.

The Magistrate Judge's initials should be used on all documents filed with the Court so that the case number reads as follows:

CV-93 7084 SVW (CTx)

NOTE: A COPY OF THIS NOTICE MUST BE SERVED WITH THE SUMMONS AND COMPLAINT ON ALL DEFENDANTS.

NOTICE TO COUNSEL

THE COURT HAS DIRECTED THAT THE FOLLOWING RULES BE SPECIFICALLY CALLED TO YOUR ATTENTION.

I. Continuing Obligation to Report Related Cases (Local Rule 4)

II. Service of Papers and Process (Local Rule 5)

III. Notice of Right to Consent to Disposition of a Civil Case by a United States Magistrate (28 U.S.C. § 636(c). General Order 194-G)

I. CONTINUING OBLIGATION TO REPORT RELATED CASES

Counsel are reminded that you have the continuing obligation to promptly advise the Court whenever one or more civil actions or proceedings previously commenced and one or more currently filed appear to be related.

Local Rule 4.3.3 provides that, "It shall be the continuing duty of the attorney in any case promptly to bring to the attention of the Court, by the filing of a Notice of Related Case(s) pursuant to Local Rule 4.3.1, all facts which in the opinion of the attorney or party appear relevant to a determination whether such action and one or more pending actions should, under the criteria and procedures set forth in Local Rule 4.3, be heard by the same judge."

Local Rule 4.2.1 provides that, "It is not permissible to dismiss and thereafter re-file an action for the purpose of obtaining a different judge." Whenever an action is dismissed before judgment and thereafter the same or essentially the same action is re-filed, the latter action shall be assigned to the

judge to whom the first action was assigned. It shall be the continuing duty of every attorney appearing in such a re-filed action promptly to bring the facts of the matter to the attention of the Clerk in writing.

II. SERVICE OF PAPERS AND PROCESS

Local Rule 5.4 provides that "Except as otherwise provided by order of Court, or when required by the treaties or statutes of the United States, process shall not be presented to the United States Marshal for service." Service of process upon classes of persons identified FRCP 4(d)(1), (2), (3) and (6) shall be accomplished in any manner provided by State law including but not limited to service by private persons qualified to serve process under the Federal Rules of Civil Procedure (a person of suitable discretion at least 18 years of age). Service upon the United States, an officer or agency thereof, shall be served pursuant to the provisions of FRCP 4(d)(4) and (5). Service should be promptly made; unreasonable delay may result in a dismissal of the action under Local Rule 12. Proof of Service must be promptly filed with the Court.

For further information inquire at the Office of the Clerk, Civil Filing window.

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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	Case No. CV93-7084 SVW (CTx) ORDER FOR PETITION OF GUARDIAN AD LITEM

The petition of Larence Perkins for appointment as Guardian ad litem for April Perkins, a minor, was

considered by the Court on this date. On proof made to the satisfaction of the Court, the Court finds that the appointment is expedient and supported by good cause.

IT IS ORDERED that the petition of Larence Perkins be granted and that April Perkins is hereby appointed Guardian ad Litem for April Perkins, a minor.

DATED: 11/22/93

/s/ Stephen J. Helman
JUDGE OF THE
DISTRICT COURT

Submitted by:

KLASS, HELMAN & ROSS

By /s/ Patrick S. Smith
PATRICK S. SMITH
Attorneys for Plaintiffs

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LIEUTENANT SCHIMANSKI

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, a minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; the COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	) No. CV 93 7084 SVW (CTx) ANSWER TO COMPLAINT; DEMAND FOR JURY TRIAL (Filed Dec. 28, 1993)

COME NOW defendants, CITY OF WEST COVINA, DETECTIVE FERRARI, DETECTIVE MELNYK and LIEUTENANT SCHIMANSKI, and answering the Complaint on file herein for themselves alone and for no other defendants, admit, deny and allege as follows:

1. Answering paragraphs 3, 7 and 9, these defendants admit the allegations contained therein.

2. Answering paragraphs 1, 2, 8, 10, 11, 12, 13, 18, 21, 22, 24 and 25, these defendants deny generally and specifically each and every allegation contained therein.

3. Answering paragraphs 14, 15, 16, and 19, these defendants deny generally and specifically each and every allegation contained therein. In addition thereto, these defendants deny that plaintiffs were injured or damaged in any sum or amount or at all by reason of any wrongful act or omission on their part.

4. Answering paragraphs 4, 5 and 6, these defendants admit the allegations contained therein except those allegations that they were the employee, agent and representative of every other defendant. As to this allegation, these defendants deny generally and specifically said allegation.

5. Answering paragraphs 17, 20 and 23, these defendants reiterate and incorporate its answers as previously contained in said answers to the Complaint.

FIRST AFFIRMATIVE DEFENSE

6. That the employees of defendant CITY OF WEST COVINA were at all times mentioned in plaintiffs' Complaint and now are duly qualified, appointed and acting

police officers of the CITY OF WEST COVINA and peace officers of the State of California and that at all times herein mentioned said employees were engaged in the performance of their regularly assigned duties as police officers.

SECOND AFFIRMATIVE DEFENSE

7. That the employees of defendant CITY OF WEST COVINA at all times herein mentioned acted in good faith, without malice and within the scope of their duties as police officers of the City of West Covina and peace officers of the State of California.

THIRD AFFIRMATIVE DEFENSE

8. That pursuant to Government Code § 818, as well as *Newport City v. Fact Concerts, Inc.*, 453 U.S. 247, 69 L.Ed.2d 616, 101 S.Ct. 2748 (1981), the City of West Covina is not liable for exemplary or punitive damages in any sum, or at all.

FOURTH AFFIRMATIVE DEFENSE

9. That any injury to plaintiffs was due to and caused by the negligence and omissions of the plaintiffs to care for themselves, which carelessness and negligence and omissions were the proximate cause of the damage, if any, to the plaintiffs.

FIFTH AFFIRMATIVE DEFENSE

10. That the actions of these answering defendants and its employees in all respects were reasonable, proper and legal.

SIXTH AFFIRMATIVE DEFENSE

11. Plaintiffs' Complaint fails to state a cause of action against defendants.

SEVENTH AFFIRMATIVE DEFENSE

12. That plaintiffs' Complaint fails to state a cause of action against these defendants for the reason that the entering on to the premises and inside were pursuant to a valid search warrant.

EIGHTH AFFIRMATIVE DEFENSE

13. Neither a public employee nor a public entity is liable for any injury caused by the act or omission of another person.

NINTH AFFIRMATIVE DEFENSE

14. Neither a public entity nor a public employee is liable for any injury caused by the institution or prosecution of any judicial proceedings within the scope of the public employee's employment.

TENTH AFFIRMATIVE DEFENSE

15. That plaintiffs' Complaint fails to state a cause of action against these defendants for, pursuant to *Monell v. Department of Social Services of the City of New York* (1978) 56 L.Ed.2d 611, there can be no recovery for a federal civil rights violation where there is no constitutional deprivation occurring pursuant to governmental custom.

ELEVENTH AFFIRMATIVE DEFENSE

16. These defendants are immune from liability pursuant to the Federal Civil Rights Act where they reasonably believed that their actions were lawful.

TWELFTH AFFIRMATIVE DEFENSE

17. That plaintiffs' Complaint does not state facts sufficient to constitute a cause of action against these defendants or any defendant herein, because simple negligence pursuant to the United States Supreme Court decision of *Parratt v. Taylor,* is not a Federal Civil Rights violation.

THIRTEENTH AFFIRMATIVE DEFENSE

18. That plaintiffs' Complaint fails to state facts sufficient to constitute a cause of action against these defendants for the reason that they are entitled to qualified immunity from this suit.

FOURTEENTH AFFIRMATIVE DEFENSE

19. That the damages, if any, should be in direct proportion to the fault of these defendants, if any, as provided by Civil Code §§ 1431 to 1431.5.

FIFTEENTH AFFIRMATIVE DEFENSE

20. Plaintiffs' Complaint fails to state a cause of action against these defendants for punitive damages in that punitive damages violate these defendants' due process of law rights.

SIXTEENTH AFFIRMATIVE DEFENSE

21. An award of punitive damages violates these defendants' due process of law rights.

WHEREFORE, defendants CITY OF WEST COVINA, DETECTIVE FERRARI, DETECTIVE MELNYK and LIEUTENANT SCHIMANSKI pray that plaintiffs take nothing by way of their Complaint and that defendants herein recover their costs and such other and further relief as the Court may deem just and proper.

DEMAND FOR JURY TRIAL

PLEASE TAKE NOTICE that defendants, CITY OF WEST COVINA, DETECTIVE FERRARI, DETECTIVE MELNYK and LIEUTENANT SCHIMANSKI, demand a trial by jury pursuant to Federal Rules of Civil Procedure, Rule 38(b) and Local Rule 3.4.10.1.

Date: December 27, 1993.

FRANSCELL, STRICKLAND,
ROBERTS & LAWRENCE

By /s/ George J. Franscell
George J. Franscell
Attorney for Defendants
CITY OF WEST COVINA,
DETECTIVE FERRARI,
DETECTIVE MELNYK and
LIEUTENANT SCHIMANSKI

[PROOF OF SERVICE Omitted In Printing]

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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, a minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	) No. CV [illegible] 7084 SVW ([illegible]Tx))) **DEFENDANTS' NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF**)) **[Defendants' Statement of Uncontroverted Facts and Conclusions of Law, Declarations and Proposed Order filed**

Concurrently Herewith]

DATE: April 11, 1994
TIME: 1:30 p.m.
CTRM: 6

Motion Cut-off:
Discovery Cut-Off:
Trial: None

(Filed Mar. 15, 1994)

* * *

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CITY OF WEST COVINA, DETECTIVE MICHAEL FERRARI, DETECTIVE DAVID MELNYK, DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, DETECTIVE WAYNE HEIECK and LT. JOHN SCHIMANSKI

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, a minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	No. CV 93 7084 SVW (CTx) **DEFENDANTS' STATEMENT OF UNCONTROVERTED FACTS AND CONCLUSIONS OF LAW; DECLARATIONS OF MICHAEL FERRARI, DAVID MELNYK, DAN NALIAN, DARIO ALDECOA, JAMES O'BRIEN, WAYNE HEIECK AND SHERRY L. HOVIND; EXHIBITS**

[Local Rule 7.14.1]

[Filed Concurrently With Defendants' Notice of Motion and Motion for Summary Judgment and [Proposed] Judgment]

DATE: April 11, 1994
TIME: 1:30 p.m.
CTRM: 6

Motion Cut-off: None
Discovery Cut-Off: None
Trial: None

(Filed Mar 15, 1994)

* * *

DECLARATION OF DAVID MELNYK

I, DAVID MELNYK, do hereby declare:

1. I am a detective with the West Covina Police Department and have been a peace officer since 1978. Unless otherwise stated, the following is of my own personal knowledge and if called upon to testify thereto, I would do so.

2. I am aware that I am a defendant in *Perkins v. City of West Covina, et al.*, Case No. CV 93 7084 SVW (CTx). I understand that this lawsuit pertains to the preparation of a search warrant and the execution of that search warrant at the plaintiffs' home on or about May 21, 1993.

3. On May 18, 1993, while on duty as a detective with the West Covina Police Department, I learned that a male later identified as Julio Alberto Clark had been shot and killed within the City of West Covina. I assisted my partner, defendant West Covina Police Department Detective Michael Ferrari, in the investigation of this homicide.

4. On May 18, 1993, Marcus Marsh, a.k.a., Marcus Winter, became a suspect in the murder of Julio Alberto Clark and other crimes.

5. On May 18, 1993, witness Lashaun McDuffy told me that Marcus Winter was her boyfriend and that his telephone number was (818) 854-1069. I traced the foregoing telephone number to plaintiffs' address at 531 Balham Avenue in La Puente.

6. My deposition was taken in this matter on February 22, 1994. During such deposition, I was asked what I had done during our investigation to ascertain that Marcus Marsh, a.k.a. Marcus Winter, lived at plaintiffs' residence at 531 Balham Avenue in La Puente. I stated that I had conducted computer checks of various records regarding Marcus Marsh and found items listing Mr. Marsh's address as 531 Balham Avenue. At the time of the deposition, I believed the foregoing to be true and correct.

7. Following my deposition, however, I reviewed the file in this case and realized that the foregoing portion of my testimony was in error. Notes contained in the file refreshed my recollection and I now recall that West Covina Police Department Officer Arthur Marinello informed me that he had spoken to Mr. Marsh's probation officer who had informed him that Mr. Marsh's most recent address was 531 Balham Avenue in La Puente. I also found documents in Mr. Marsh's Cadillac which identified his address as 531 Balham Avenue. I relayed this information to Detective Michael Ferrari.

8. I am informed and believe that on May 20, 1993, defendant Detective Michael Ferrari obtained a search warrant authorizing a search of plaintiffs' residence located at 531 Balham Avenue in La Puente from the Honorable Dan Thomas Oki of the Citrus Municipal Court.

9. On or about May 21, 1993, I assisted in supervising the officers who served and executed such search warrant at 531 Balham Avenue in La Puente. Prior to arriving at plaintiffs' residence, I had reviewed the search warrant. I was fully aware of what items it authorized officers to search for and assisted in supervising the officers who searched for those items.

10. It is the practice of the West Covina Police Department to conduct all premises searches in a reasonable manner without any unnecessary destruction of or damage to property. It is also the practice of the West Covina Police Department to consult the Search Warrant Manual drafted by the Los Angeles County District Attorney's Office regarding searches. I personally consult such

Manual and consider it to be authoritative source on legal issues regarding searches. Insofar as the return property seized during a search, I have relied upon pages 129-130 of such Manual, true and correct copies of which are attached hereto as Exhibit "4".

11. While supervising officers conducting the search, I did not intentionally damage or destroy any property. If I did cause any damage to property, it was inadvertent. I do not, however, have any recollection of damaging or destroying any property during the course of searching plaintiffs' residence and did not observe any other West Covina Police Department officer damage or destroy any property during the course of such search.

I declare under penalty of perjury under the laws of the United States and the State of California that the foregoing is true and correct. Executed this 14TH day of March, 1994, at West Covina, California.

/s/ David Melnyk
DAVID MELNYK

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Attorneys for CITY OF WEST COVINA, DETECTIVE DAVE FERRARI, DETECTIVE MIKE MELNYK,

DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, DETECTIVE WAYNE HEIECK and LT. JOHN SCHIMANSKI in Case No. CV 93 7084 SVW (CTx)

LOS ANGELES COUNTY MUNICIPAL COURT

CITRUS JUDICIAL DISTRICT

PEOPLE OF THE STATE OF CALIFORNIA, Plaintiff, v. MARCUS MARSH, Defendant.	)	Case No. KA018341 **REQUEST AND [PROPOSED] ORDER FOR RELEASE OF PROPERTY**

I. REQUEST FOR RELEASE OF PROPERTY

Items were seized pursuant to Search Warrant No. J4286 from the premises described as the residence located at 531 Balham Avenue, City of La Puente, County of Los Angeles, further described as a single family residential dwelling with a detached garage, tan stucco walls, brown wood trim, and a rock roof. The front door faces east and the numbers 531 are next to the front door. The items seized are being retained in police custody pursuant to *Penal Code* Section 1536.

Petitioner seeks the release of certain of these items from police custody for purposes of disposition of them. The items for which release is sought are:

1. $2,469.00 in United States currency;

2. A starter pistol;

3. A 12-gauge shotgun as described as Item No. 6 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

4. One black case, although police will continue to retain the ammunition located within it, as described as Item No. 15 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

5. One soft gun case with black plastic grip as described as Item No. 17 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

6. Miscellaneous papers and phone books in the names of C. Perkins and L. Perkins as described as Item No. 13 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A".

These items were seized in connection with the above entitled case but are no longer needed for the following reason:

Further investigation has led to the conclusion that these items will not be used as evidence in the pending criminal prosecution against Marcus Marsh, a.k.a. Marcus Winter for homicide.

The proposed disposition of these items upon release to petitioner is as follows:

Please permit the owners of such property, Clara Mae Perkins or Lawrence Perkins, or their attorneys, Klass, Helman & Ross, to retrieve such items.

WHEREFORE, petitioner seeks the release of said items.

I swear under penalty of perjury the foregoing is true and correct to the best of my information and belief.

Date: March 1, 1994

FRANSCELL, STRICKLAND, ROBERTS & LAWRENCE

By /s/ Sherry L. Hovind
SHERRY L. HOVIND

Attorney for Defendants CITY OF WEST COVINA, DETECTIVE DAVE FERRARI, DETECTIVE MIKE MELNYK, DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, DETECTIVE WAYNE HEIECK and LT. JOHN SCHIMANSKI in Case No. CV 93 7084 SVW (CTx)

ORDER FOR RELEASE OF PROPERTY

TO THE WEST COVINA POLICE DEPARTMENT:

Good cause having been shown, it is ordered that the items described above be released from policy custody into the custody of Clara Mae Perkins or Lawrence Perkins, or their attorneys, Klass, Helman & Ross.

DATED: _____

_____

DAN THOMAS OKI
JUDGE OF THE LOS ANGELES
COUNTY MUNICIPAL COURT

[Proof Of Service Omitted In Printing]

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AND APRIL PERKINS

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	Case No. CV93-7084 SVW (CTx) OPPOSITION TO MOTION FOR SUMMARY JUDGMENT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF; DECLARATION OF LAWRENCE PERKINS (Filed March 28, 1994) DATE: April 11, 1994 TIME: 1:30 p.m. CTRM: 6 MOTION CUT-OFF: None DISCOVERY CUT-OFF: None TRIAL: None Set

Plaintiffs, Lawrence Perkins, Clara Perkins, and April Perkins, hereby file their Opposition to the defendants' Motion for Summary Judgment

Dated: March 28, 1994 KLASS, HELMAN & ROSS

By /s/ Patrick S. Smith
PATRICK S. SMITH

* * *

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, MINOR, BY AND THROUGH HER GUARDIAN AD LITEM, LAWRENCE PERKINS, PLAINTIFFS, VS. THE CITY OF WEST COVINA, A POLITICAL SUBDIVISION OF THE STATE OF CALIFORNIA; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, A POLITICAL SUBDIVISION OF THE STATE OF CALIFORNIA, AND DOES 1 THROUGH 50, INCLUSIVE, DEFENDANTS.	NO. CV93-7084 SVW (CTX)

DEPOSITION OF MICHAEL FERRARI

TAKEN ON

TUESDAY, FEBRUARY 22, 1994

REPORTED BY: VICTORIA MELEKIAN

CSR NO. 6996

* * *

[p. 77] PERKINS, DID YOU, IN BETWEEN THOSE TWO PERIODS, EVER TALK TO A SUPERVISOR CONCERNING THE RETURN OF ANY OF PERKINS' PROPERTY?

A. I DON'T BELIEVE IT WAS AT THAT TIME THAT I SPOKE TO A SUPERVISOR.

Q. APPROXIMATELY A WEEK AFTER YOU FIRST SPOKE WITH MR. PERKINS, YOU, AGAIN HAD COMMUNICATION WITH HIM; IS THAT RIGHT?

A. CORRECT.

Q. DID HE COME TO THE STATION?

A. I BELIEVE HE DID.

Q. DID HE BRING WITH HIM RECEIPTS?

A. YES.

Q. AT THAT TIME YOU TOLD HIM HOW TO GO ABOUT GETTING A COURT ORDER TO GET HIS PROPERTY BACK; IS THAT RIGHT?

A. CORRECT.

Q. DID YOU TALK TO ANY SUPERVISOR ON THAT SUBJECT, MR. PERKINS GETTING HIS PROPERTY BACK BY A COURT ORDER AT ANY TIME AFTER THIS MEETING A WEEK AFTER THE EXERCISE OF

THE WARRANT WHERE HE CAME IN AND HE SHOWED YOU HIS THINGS?

A. I BELIEVE AFTER THE SECOND MEETING, MR. PERKINS CONTINUED TO CALL BACK BECAUSE HE HAD SOME PROBLEMS WITH GETTING A COURT ORDER. I [p. 78] BELIEVE THERE WAS A POINT IN TIME WHERE I WENT TO MY SERGEANT AND EXPLAINED THAT HE MAY BE GETTING A CALL FROM MR. PERKINS BECAUSE HE WAS NOT HAPPY WITH ME.

Q. DID MR. PERKINS INDICATE TO YOU WHAT PROBLEMS HE WAS HAVING GETTING THE COURT ORDER?

A. YES, HE DID.

Q. WHAT DID HE SAY?

A. HE SAID THERE WAS NO CASE FILED AND THAT HE COULD NOT GET A COPY OF THE SEARCH WARRANT.

Q. DID YOU OFFER TO PROVIDE HIM WITH A COPY OF THE WARRANT?

A. NO, I DID NOT.

Q. WHEN MR. PERKINS TOLD YOU HE WAS HAVING DIFFICULTY BECAUSE HE COULDN'T GET A COPY OF THE WARRANT AND THERE WAS NO CASE FILED, WHAT INFORMATION OR COMMUNICATION DID YOU HAVE WITH MR. PERKINS ON THE SUBJECT OF GETTING HIS PROPERTY BACK?

A. I GOT A LITTLE MIXED UP IN TIMES. HE INITIALLY CAME BACK AND SAID HE COULD NOT

FIND ANY RECORD OF THE CASE BEING FILED WHICH WAS CORRECT, THERE WAS NO CASE FILED AT THAT POINT IN TIME. THERE WAS A SEARCH WARRANT RETURN DONE, BUT WE HAD [p. 79] THE SEARCH WARRANT SEALED BECAUSE WE WERE STILL IN THE MIDST OF AN INVESTIGATION SO IT WAS AT THAT POINT IN TIME I TOLD HIM TO GO SEE JUDGE OKI WHO HAD SIGNED THE ORIGINAL SEARCH WARRANT SINCE HE WAS UNABLE TO LOCATE ANY CASE NUMBER TO GET ON CALENDAR.

Q. AND DID YOU HAVE A SUBSEQUENT COMMUNICATION WITH HIM WHEN HE INDICATED HE ATTEMPTED TO CONTACT JUDGE OKI?

A. YES.

Q. WHAT DID HE SAY TO YOU, AND WHAT DID YOU SAY TO HIM?

A. HE SAID JUDGE OKI WAS ON VACATION AND THAT HE WOULD BE GONE A WEEK OR TWO AND IT WAS AT THAT POINT I TOLD HIM THAT I DIDN'T KNOW WHAT MORE I COULD DO TO HELP HIM AND HE MAY WANT TO RETAIN AN ATTORNEY TO HELP HIM GET A COURT ORDER TO GET HIS PROPERTY.

Q. IS THAT WHEN YOU INFORMED YOUR SERGEANT THAT MAYBE MR. OKI – EXCUSE ME – MR. PERKINS MIGHT BE CONTACTING THE SERGEANT?

A. I BELIEVE SO.

Q. AND IS THAT BECAUSE – STRIKE THAT.

IN ANY CONVERSATION THAT YOU HAD WITH MR. PERKINS PRIOR TO THE FILING OF THIS CASE, AND

* * *

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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, a minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	No. CV 93 7084 SVW (CTx) **DEFENDANTS' SUPPLEMENTAL MEMORANDUM RE DEFENDANT'S MOTION FOR SUMMARY JUDGMENT; DECLARATION OF MICHAEL FERRARI** **DATE: Under Submission** **TIME: Not Applicable** **CTRM: 6** **MOT. CUT-OFF: NONE**

DIS. CUT-OFF: NONE
TRIAL: JUNE 7, 1994

(Filed Apr. 27, 1994)

* * *

DECLARATION OF MICHAEL FERRARI

I, MICHAEL FERRARI, state and declare as follows:

1. I am a Detective with the West Covina Police Department. Unless otherwise stated, the following is of my own personal knowledge and if called upon to testify thereto, I would do so.

2. As stated in my prior declaration, I prepared an Affidavit and Search Warrant for the search of the Perkins' residence located at 531 Balham Avenue, La Puente, California. A true and correct copy of the Affidavit and Search Warrant are attached to my Declaration dated March 14, 1994 as Exhibit "1". On May 20, 1993, I obtained the signature of the Honorable Dan Thomas Oki of the Citrus Municipal Court for the search warrant.

3. On May 21, 1993, I assisted in the service of the aforementioned search warrant at the 531 Balham address. The search warrant did not specifically authorize the seizure of cash. During the course of the search, I was advised that $2,469.00 in cash had been located in a closet at the Balham residence. At the time the search was being conducted, I possessed the following information:

(a) The primary suspect in the homicide investigation was an individual known as Marcus Marsh.

(b) Marcus Marsh was known to be a Crip gang member.

(c) Crip gang members are known to be involved in illegal drug sales.

(d) We were advised that Marcus Marsh was the boyfriend of Lashaun McDuffy.

(e) We were advised that Marcus Marsh would sometimes stay at the residence of Lashaun McDuffy and sometimes at the Perkins' residence.

(f) On May 18, 1993, a search of Lashaun McDuffy's home was conducted and evidence of illegal drug trafficking was located, i.e., rock cocaine, $949.00 in currency, three pagers, one of which was displaying that it was full of 36 phone numbers, 32 caliber ammunition, and a photo album depicting gang members displaying gang hand signs. Other evidence indicating the presence of gang members and criminal activity was located at the Lashaun McDuffy residence as set forth in the Affidavit in support of Search Warrant which was attached as Exhibit "1" to my March 14, 1994 Declaration.

4. Attached hereto as Exhibits "6", "7", and "8" are photographs which depict the front of the Perkins' residence located at 531 Balham. The Perkins' residence is a fairly small, older single family residence in what I would describe as a middle to lower income neighborhood. Upon entry of the Perkins' residence, I observed that the

condition of the interior of the house as well as its furnishings were consistent with what I would describe as a lower income level family.

5. In addition to locating the currency at the Perkins' residence, we also located paperwork in the name of Marcus Marsh, gang photos on the kitchen table, gang photos in the southwest bedroom, various types of ammunition and a shotgun. In light of the fact that we had information and evidence of drug trafficking at the Lashaun McDuffy residence, the fact that Marcus Marsh was a gang member and lived part time at the McDuffy residence and part time at the Perkins' residence, the fact that we found evidence of gang membership at the Perkins' residence and ammunition, it seemed likely to me that the $2,469.00 in cash was evidence of criminal activity, most likely, drug trafficking. It is well known that large sums of cash are consistent with illegal drug trafficking since such purchases typically occur through cash transactions. Furthermore, it seemed less likely to me that the cash would be consistent with non-criminal behavior given that it was found in a home apparently occupied by individuals at a low income level.

6. When the aforementioned Search Warrant was obtained from Judge Oki, the search warrant was sealed. Following the search of the Perkins' residence, I filed the Search Warrant and the Return of Search Warrant with the criminal clerk of the Citrus Municipal Court. Even though the Search Warrant was sealed, it was listed in the register with the criminal clerk by the address where the search occurred, the number of the search warrant and the date of the return. To my knowledge, the clerk's

register is a public document which can be viewed by anyone who so requests.

7. Following the search of the Perkins' residence, I spoke with Lawrence Perkins and advised him that the search warrant had been signed by Judge Oki of the Citrus Municipal Court and that Mr. Perkins could obtain a release of his property from Judge Oki. I believe that when I spoke with Mr. Perkins that I provided him with the number of the search warrant which he could use in identifying the search warrant with Judge Oki when he requested return of his property. Even if he did not have the number of the search warrant, he could still identify the warrant for Judge Oki through the register maintained by the clerk of the Citrus Municipal Court. Furthermore, when I spoke with Lawrence Perkins, he was aware that our investigation pertained to Marcus Marsh. Consequently, once a criminal proceeding was commenced against Mr. Marsh, Mr. Perkins would know the identity of the case to which the search warrant pertained, i.e., *People v. Marcus Marsh.*

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this 26 day of April, 1994 at West Covina, California.

/s/ Michael Ferrari
MICHAEL FERRARI

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LAWRENCE PERKINS, CLARA PERKINS
AND APRIL PERKINS

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	) Case No. CV93-7084 SVW (CTx))) NOTICE OF MOTION) AND MOTION TO) AMEND) COMPLAINT, OR IN) THE ALTERNATIVE,) TO INCLUDE THE) CLAIM IN THE) PRETRIAL) CONFERENCE) ORDER;) MEMORANDUM OF) POINTS AND) AUTHORITIES;) DECLARATION OF) PATRICK S. SMITH)) (Filed June 9, 1994)) [Hearing to be set]

[Lodged concurrently with Ex Parte Application to Shorten Time]

PRE-TRIAL DATE: 6-13-94
TRIAL DATE: 6-14-94

TO ALL PARTIES AND TO THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on _____, 1994 at 4:00 p.m. in the Courtroom of the Honorable Stephen v. Wilson of the above-entitled Court located at 317 N. Spring Street, Los Angeles, California, plaintiffs will move to amend the complaint, or, in the alternative, to include the Procedural Due Process claim in the Pretrial Conference Order.

The grounds for this Motion are fully set forth in Plaintiff's Memorandum of Points and Authorities attached hereto,

Plaintiff's Motion is based upon this Notice of Motion and Motion, the Memorandum of Points and Authorities filed herewith, the Declaration of Patrick S. Smith, on all other documentary evidence filed herewith, and on any oral presentation made before this Court.

DATED: June 8, 1994

Respectfully submitted,

KLASS, HELMAN & ROSS

By /s/ Patrick S. Smith
PATRICK S. SMITH
Attorneys for Plaintiffs

MEMORANDUM OF POINTS AND AUTHORITIES

I

PRELIMINARY STATEMENT

As the court knows, plaintiffs' complaint centers around an alleged unlawful search of the plaintiffs' residence and seizure of certain property from that residence. On May 9, 1994, this court issued its ORDER on the parties' cross-motions for summary judgment. In that Order, the court, *sua sponte*, found "that the facts, as currently presented by plaintiffs, may form the basis of a Due Process challenge, a cause of action not currently raised by plaintiffs' complaint." The court also requested supplemental briefing on certain issues, "[i]f plaintiffs intend to amend the complaint to include a Procedure Due Process challenge. . . . " The plaintiffs expressed their intent to amend the complaint by filing their supplemental brief.

Having recognized the deficiency in their complaint, as pointed out by the court, plaintiffs now move for an order allowing a Procedural Due Process challenge to be included in the complaint, or, in the alternative, that the court allow plaintiffs to include the issue in the Pretrial Conference Order.[1]

---

[1] Plaintiffs believe that their alternative request, i.e., to include the issue in the Pretrial Conference Order, is the most expeditious and appropriate avenue for bringing the claim into the case. In the interest of preserving this court's time, the plaintiffs have not submitted a proposed amended complaint, but respectfully refer the court to the [Proposed] Pretrial Conference Order for the proposed statement of the issue. See, Proposed Pre-Trial Conference Order, a copy of which is attached hereto as Exhibit "A."

II

STATEMENT OF FACTS

The facts are stated in the court's order of May 9, 1994. See Order, attached hereto as Exhibit "B."

The operative facts, as stated in plaintiffs' complaint, which form the basis for their claims under 42 U.S.C. §1983 also established a cause of action for a violation of Procedure Due Process, also under 42 U.S.C. §1983. Plaintiffs seek relief to include this legal theory in the Pretrial Conference Order based on the fact that the City of West Covina currently has no procedure for a non-defendant to retrieve items seized under a search warrant. Such claim is based on the same set of facts as are pled in the original complaint, thus the theory arises out of the same operative facts. This, of course, was recognized by the court in its Order on the cross-motions for summary judgment. See, Exhibit "B," page 5:15-28.

III

IT IS THE POLICY OF THE COURT TO LIBERALLY PERMIT THE AMENDMENT OF PLEADINGS ESPECIALLY WHERE AN ADDITIONAL CAUSE OF ACTION ARISES FROM THE SAME OPERATIVE FACTS ALREADY PLED.

Motions to Amend are freely granted where no prejudice results to the opposing party. Fed.R.Civ.P. 15(a) provides: "Leave *shall be freely given* when justice so requires." (Emphasis added). The Supreme Court, in its opinion in *Foman v. Davis*, 371 U.S. 178, 83 S.Ct. 227 (1962), enunciated the following general standard, which is to be employed under Rule 15(a) by the district courts:

> "If the underlying facts or circumstances relied upon by a plaintiff may be a proper subject of relief, he ought to be afforded an opportunity to test his claim on the merits. In the absence of any apparent or declared reason – such as undue delay, bad faith or dilatory motive on the part of the movant, repeated failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party by virtue of allowance of the amendment, futility of amendment, etc. – the leave sought should, as the rules require, be 'freely given.' "

Id., 371 U.S. 178, 182, 83 S.Ct. 227, 230 (1962).

The seminal case in the Ninth Circuit, interpreting *Foman*, is *Howey v. United States*, 481 F.2d 1187 (9th Cir. 1973). In *Howey*, the district court denied a motion to amend. The motion to amend had been made five years after the complaint had been filed. The Ninth Circuit reversed. In doing so, the court observed as follows:

> "where there is a lack of prejudice to the opposing party and the amended complaint is obviously not frivolous, or made as a dilatory maneuver in bad faith, it is an abuse of discretion to deny such a motion."

Howey at 1191. The court further observed that *"[o]nly* where prejudice is shown or the movant acts in bad faith are courts protecting the judicial system . . . when they deny leave to amend a pleading." *Id.* See also, *Hurn v. Retirement Fund Trust of Plumbing, Heating & Piping Industry*, 648 F.2d 1252 (9th Cir. 1981); *International Association of Machinists and Aerospace Workers v. Republic Airlines*, 761 F.2d 1386 (9th Cir. 1985); *Poling v. Morgan*, 829 F.2d 882 (9th Cir. 1987).

Moreover, Fed.R.Civ.P. Rule 15(c) states, in part, that:

> "An amendment of a pleading relates back to the date of original pleading when (2) the claims . . . asserted in the amended pleading arose out of the conduct, transactions, or occurrence set forth or attempted to be set forth in the original pleading,. . . . '

In short, there exists a "strong policy permitting amendments" in the Ninth Circuit.

In the instant action, plaintiffs have moved as promptly as possible with regard to requesting this amendment to add the appropriate cause of action with regard to the Procedural Due Process claim. Upon receipt of the Court's Order on the cross-motions for summary judgment, and after a review of the Complaint and the underlying facts, and, finally, after researching the issues brought to their attention by the court, plaintiffs have recognized that such a claim is appropriate.

IV.

THE GRANTING OF THIS MOTION WOULD NOT CAUSE UNDUE DELAY OR BE PREJUDICIAL TO ANY OF THE DEFENDANTS

To the extent that the defendants may claim that they are prejudiced by the amendment at the Pretrial Conference Order, such is without merit. The sole significance of the amendment is to add a legal theory related to *Monell* liability, but which is based upon the same set of facts are presented in plaintiffs' complaint. Moreover, the court instructed the defendants to brief the issue on two occasions; consequently, the defendants were well aware of

the possibility that the court was considering the issue. In addition to the foregoing, no prejudice would result since, necessarily, *all* the information and facts concerning the procedures, if any, to retrieve property seized during the course of a search warrant are within the defendants' own knowledge.

Furthermore, the parties have conducted thorough discovery in this action and have presented the relevant portions of that discovery in their cross-motions for summary judgment. The defendants' method of discovery in this matter would not have changed had the complaint stated a cause of action for a violation of Procedure Due Process. In other words, relief requested herein would not prejudice the defendants in that all of the facts are either already discovered or within their own knowledge. Since no additional discovery need be taken, no undue delay will result.

Finally, plaintiffs have made this motion in order to obtain a full hearing on the merits of their claim and not with a dilatory or bad motive.

V.

CONCLUSION

For the reasons set forth herein and under the law hereinabove cited, it is respectfully submitted that it is in the best interest of justice to permit plaintiffs to include, in the Pretrial Conference Order, the issue statements

regarding the Procedural Due Process claim under 42 U.S.C. §1983

DATED: June 8, 1994 Respectfully submitted,

KLASS, HELMAN & ROSS

By /s/ Patrick S. Smith
PATRICK S. SMITH
Attorneys for Plaintiffs

DECLARATION OF PATRICK S. SMITH

I, PATRICK S. SMITH, declare as follows:

1. I am an attorney at law duly licensed to practice in all the courts of the State of California and the United States District Courts for the Central District of California. I am an associate in the firm Klass, Helman & Ross, attorney of record for Plaintiffs, herein. I know the following facts to be true of my own personal knowledge and if called upon to testify, I could competently testify thereto.

2. Attached hereto as Exhibit "A" is a true and correct copy of the [Proposed] Pretrial Conference Order lodged with the court by the parties in this action.

3. Attached hereto as Exhibit "B" is a true and correct copy of the court's ORDER regarding the parties' cross-motions for summary judgment.

4. The Proposed Pretrial Conference Order in this matter includes the Procedural Due Process statement as both an issue of fact and an issue of law. Plaintiffs' respectfully request that the court grant the relief

requested by including the Procedural Due Process claim in the Pretrial Conference Order.

5. Any claim by the defendants in this action that prejudice will result is unfounded. All of the facts regarding the attempts by Mr. Perkins to retrieve his currency, were discovered by the defendants, and nothing else could have been done. The sole significance of the amendment is to add a legal theory related to *Monell* liability, but which is based on the same set of facts are presented in plaintiffs' complaint. The court previously instructed the defendants to brief the issue on two occasions. Thus, the defendants were well aware that the court was considering the issue. In addition, no prejudice would result since, necessarily, *all* the information and facts concerning the procedures, if any, to retrieve property seized during the course of a search warrant are within the defendants' own knowledge. The parties have conducted discovery in this action and have presented the relevant portions of that discovery in their cross-motions for summary judgment. The defendants' method of discovery in this matter would not have changed, in my opinion, had the complaint stated a cause of action for a violation of Procedure Due Process. In other words, the proposed amendment or statement of issue in the Pretrial Conference Order does not prejudice the defendants in that all of the facts are either already discovered or within their own knowledge.

6. The only addition to the Proposed Pretrial Conference Order would be the inclusion of this legal theory as to the interpretation of facts already discovered by both parties. No undue delay of time would occur as a result of the inclusion of the statement of issue in the

Pretrial Conference Order, and the plaintiffs have not made this motion with a bad faith or dilatory motive.

7. Your declarant respectfully prays for the relief herein requested and that the court include in the Pretrial Conference Order the proposed Procedure Due Process issue.

I declare under penalty of perjury of the laws of the California that the foregoing is true and correct.

Executed this 8th day of June, 1994, at Los Angeles, California.

/s/ Patrick S. Smith
PATRICK S. SMITH

[Proof Of Service Omitted In Printing]

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

Lawrence Perkins, et al. Plaintiffs, v. The City of West Covina, et al. Defendants.	)	CV 93-7084 SVW (CTX) ORDER (Filed Jul. 6, 1994)

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Introduction

Presently before the Court is a civil rights action alleging violations of plaintiffs' Fourth Amendment rights. The claims stem from the allegedly unlawful search of plaintiffs' home as well as the allegedly unlawful seizure of plaintiffs' property, including approximately $2,500 in cash and a starter pistol. Plaintiffs have named as defendants the City of West Covina and the officers present during the search of their home.

By means of an Order dated May 10, the Court granted summary judgment in favor of all defendants on the claim that the defendants failed to meet the proper knock-notice requirements and the claim that the search warrant was issued without probable cause. The Court also granted summary judgment in favor of the City of West Covina on the Claim for unlawful search.

The Court presently grants summary judgment for all defendants on the claim for unlawful seizure of plaintiffs' property.

Statement of Facts

Lawrence Perkins, Clara Perkins and April Perkins ("plaintiffs") reside at 531 Balham Street in West Covina. On May 21, 1993, their home was searched by police officers of the City of West Covina (the "City"). Among the officers present at the search were defendants Detective Ferrari, Detective Melnyk, Lieutenant Schimanski, Detective Aldecoa and Detective O'Brien (the "individual defendants").

On May 18, 1993, an individual named Julio Alberto Clark had been shot to death at the residence of Lashaun McDuffy. The police searched McDuffy's residence. They found evidence linking McDuffy's boyfriend Marcus Marsh (a.k.a. Marcus Winter) to the murder. They also found a vial of cocaine and $994.00 in cash.

Marsh was known by the police department to be a member of the neighborhood Crips street gang. Furthermore, he had prior arrests for carrying a concealed weapon, attempted murder, possession of stolen property, sale of cocaine and grand theft.

McDuffy provided the police with Marsh's telephone number. This number was traced to plaintiffs' address, where Marsh had been boarding. On May 20, 1993, the Honorable Dan Thomas Oki signed a search warrant ordering the search of plaintiffs' house. The warrant authorized a search for "any evidence of street gang activity" as well as "[a]ny evidence of firearms of the following caliber: 9mm."

During the search, the police confiscated suspected gang clothing, paperwork belonging to Marsh and an

address book belonging to Mr. Perkins. The police also seized numerous pictures depicting gang members, several guns and various types of ammunition.

Discussion

City of West Covina

As a general rule, a municipality is not liable under 42 U.S.C. § 1983 on the basis of respondeat superior. Instead, the municipality will only be held liable if plaintiff shows that the violation resulted from an unconstitutional policy, practice or custom. *See Monell v. Department of Social Servs.*, 98 S.Ct. 2018 (1978); *accord St. Louis v. Praprotnik*, 108 S.Ct. 915, 926 (1988). In order to prevail, plaintiff need not produce evidence of a written policy. Instead, plaintiff may produce evidence of a long and frequent pattern of constitutional deprivations. In the alternative, plaintiff may prove that the unconstitutional action was taken by an individual with policy making authority. *Monell*, 98 S. Ct. at 2036. Furthermore, a custom or practice may be inferred where governmental officials act in deliberate indifference in refusing to sanction an employee for engaging in unconstitutional conduct. *McRorie v. Shimoda*, 795 F.2d 780 (9th Cir. 1986) (where plaintiff alleged that he was deprived of his liberty rights by prison guards, the appellate court overruled the dismissal of prison wardens as defendants, finding that plaintiff should have the opportunity to amend his complaint to state that wardens were aware of and were deliberately indifferent to the violations); *accord Thompson v. City of Los Angeles*, 885 F.2d 1439 (9th Cir. 1989).

In the present case, plaintiffs have offered no evidence that unlawful seizures are condoned by the City of West Covina. Nor have plaintiffs produced evidence of a pattern of unlawful seizures. Finally, plaintiffs have failed to offer evidence that City policy-making officials were aware of, but were deliberately indifferent to, the seizure of plaintiffs' cash and starter pistol. Accordingly, the Court must GRANT the City's motion for summary adjudication on plaintiffs' claim for seizure of the cash and the starter pistol.

Individual Defendants

The Court finds that the individual defendants are, as a matter of law, entitled to qualified immunity on plaintiffs' claim for seizure of the $2,469.00 and the starter pistol. Accepting the facts in the light most favorable to plaintiff, the Court finds that a reasonable police officer could have believed that, under clearly established principles of law, he was entitled to seize plaintiffs' property. *Act Up/Portland v. Bagley*, 988 F.2d 868 (9th Cir. 1993).

A police officer may seize property under the plain view doctrine if the officer is in a lawful position to view the item, the discovery of the item is inadvertent, and the item reasonably appears to be evidence of a crime. *United States v. Washington*, 797 F.2d 1461 (9th Cir. 1986).

In the present case, there is no question that the officers were in a lawful position when they viewed plaintiffs' cash and pistol. The officers had a valid warrant to search the entire house for guns and gang paraphernalia. Both the cash and the starte[r] pistol were seized in places where the guns and gang paraphernalia

could have been found. Furthermore, the discovery of the cash and starter pistol was, accordingly to the undisputed evidence, inadvertent. Accordingly, the only issue is whether a reasonable police officer could have believed that there was probable cause to seize the cash and starter pistol.

A reasonable officer could undoubtedly have believed that the starter pistol was evidence of a crime. Defendants have submitted affidavits stating that starter pistols are often used by gang members to frighten, harass and inflict bodily harm. Furthermore, the police had reason to believe that gang members resided in plaintiffs' house – not only were they informed that Marcus Marsh resided there, but they also found pictures depicting individuals in traditional gang attire making gang "signs" with their hands. In short, a reasonable officer, based upon the suspicion that gang members resided in plaintiffs' house and their knowledge regarding the potential use of the starter pistol, could have believed that the pistols were evidence of illegal gang activity.

A reasonable officer could also have believed that the cash was evidence of a crime, specifically drug dealing. A number of Circuit Courts have upheld the seizure of cash as evidence of drug crimes. *See e.g., U.S. v. Garcia*, 983 F.2d 1160 (1st Cir. 1993); *U.S. v. Vargas*, 945 F.2d 426 (1st Cir. 1991); *U.S. v. Cooper*, 942 F.2d 1200 (7th Cir. 1991); *U.S. v. Gordils*, 982 F.2d 64 (2nd Cir. 1992).

It is true that the cited cases involved greater sums of money than the sum involved in the present case, and that, in all of the cited cases, the officers performing the

search discovered additional incriminating evidence such as drugs along with the cash. However, considering the facts known by the officers in the present case, it would be unreasonable to expect an officer acting in the line of duty to make the subtle distinction between the facts of *Garcia, Vargas* and *Gordils* and the present case. First, not only did the officers reasonably believe that Marsh resided in plaintiffs' house, but they also had reason to believe that Marsh was involved in illegal drug activity. Marsh had at least one prior arrest for drug dealing. Furthermore, Marsh was the chief suspect in a murder which took place at the residence of Lashaun McDuffy. In searching McDuffy's residence, the police found cocaine as well as approximately $1,000 in cash. In view of these facts, an officer could have concluded that the cash was the proceeds of Marsh's drug dealing. Second, in searching plaintiffs' house the police uncovered a number of suspicious items such as guns, ammunition, gang photos and false identification cards. These items would corroborate the officer's belief that the cash was evidence of a crime. Third, plaintiffs' home is an inexpensive home in a working class neighborhood, $2,500 is a suspiciously large sum of money to find stashed away in such a house.

Plaintiffs argue that a reasonable police officer could not have believed that there was probable cause to seize the cash because was seized from the Southwest bedroom and, based on the paperwork seized from that bedroom, a reasonable officer would have known that the bedroom was used exclusively by the plaintiffs and not by Marsh. Thus, because there was no reason to connect the Southwest bedroom with Marsh, a reasonable officer could not have believed that the cash was evidence of a drug crime.

The Court must reject this argument for several reasons. First, the house, as depicted in photographs offered by both plaintiffs and defendants, is a small house. It does not consist of discernible "apartments." A reasonable officer would not necessarily conclude that an individual residing in the house did not have access to one particular bedroom. Secondly, the paperwork seized in the Southwest bedroom is inconclusive in identifying the resident of the bedroom. Although the address book was inscribed with the name of Lawrence Perkins, a social security card with the name of an entirely different individual was discovered. Because of this disparity, a reasonable officer may not, based upon the paperwork alone, have known that the plaintiffs had exclusive access to the room. Finally, several suspicious items, such as guns and ammunition, were seized in the Southwest bedroom along with the cash.

In short the Court must find, as a matter of law, that a reasonable police officer could have believed that there was probable cause to seize the cash and the starter pistol. Accordingly, the individual defendants are entitled to summary judgment on the grounds of qualified immunity.

Conclusion

The Court grants defendants' motion for summary judgment on plaintiffs' claim for unlawful seizure of the cash and the starter pistol.

IT IS SO ORDERED

DATED: July 1, 1994

/s/ Stephen V. Wilson
STEPHEN V. WILSON
UNITED STATES DISTRICT
JUDGE

PATRICK S. SMITH, Bar # 120220
EDWARD M. FOX, Bar #123075
KLASS, HELMAN & ROSS
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Los Angeles, California 90025
(310) 277-2224

Attorneys for Plaintiffs,
LAWRENCE PERKINS, CLARA PERKINS
AND APRIL PERKINS

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	) Case No. CV93-7084 SVW (CTx)) SECOND NOTICE OF APPEAL (Filed Aug. 31, 1994)

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

NOTICE IS HEREBY GIVEN that plaintiffs, Lawrence Perkins and Clara Perkins, hereby appeal to the United States Court of Appeals for the Ninth Circuit from the orders granting summary judgment and trial rulings. The previous notice may have been prematurely filed and therefore, plaintiffs are filing this Second Notice of Appeal. Further, counsel for the defendants has changed. Counsel for Defendants is:

Shel Harrell, Esq., Franscell, Strickland, Roberts & Lawrence, 401 Civil Center Drive West, Suite 800, Santa Ana, California 92701-7502.

Dated: August 29, 1994

KLASS, HELMAN & ROSS

By /s/ Patrick S. Smith
PATRICK S. SMITH
Attorney for Plaintiffs

[Proof Of Service Omitted In Printing]

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CITY OF WEST COVINA

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS; CLARA PERKINS, APRIL PERKINS, a minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. CITY OF WEST COVINA, et al., Defendants,	No. CV 93-7084 SVW (9th Cir. No. 94-56365) **NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATIONS OF DAVID D. LAWRENCE AND MICHAEL FERRARI** (Received June 12, 1996) **[SEPARATE STATEMENT OF UNCONTROVERTED FACTS AND CONCLUSIONS OF LAW FILED CONCURRENTLY HEREWITH]** **Date: June 24, 1996** **Time: 1:30 p.m.** **Crtm: "6"**

DECLARATION OF DAVID D. LAWRENCE

I, DAVID D. LAWRENCE, state and declare as follows:

1. I am an attorney at law, duly authorized to practice before this Court and I am a shareholder in the firm of Franscell, Strickland, Roberts & Lawrence, attorneys for defendant City of West Covina in the instant action. If called upon to do so, I could and would competently testify to the facts set forth herein of my own personal knowledge.

2. Attached hereto as Exhibit "1" are true and correct copies of the following pages of the deposition of plaintiff Lawrence Perkins taken on February 25, 1994: 205, 206, 207 and 208.

3. Attached hereto as Exhibit "2" is a true and correct copy of the SEARCH WARRANT NOTICE OF SERVICE which was left at the plaintiff's residence following the search. This document was provided to defense counsel by plaintiff's counsel at the early meeting of counsel which was conducted on January 26, 1994 and was submitted by plaintiffs Lawrence and Clara Perkins in support of their motion for summary judgment as Exhibit "A".

4. Attached hereto as Exhibit "3" is a true and correct copy of the declaration of Jeffrie Madland submitted to the Court by plaintiffs on or about May 23, 1994 in conjunction with their SUPPLEMENTAL BRIEFING RE ISSUES RAISED IN COURT'S ORDER OF MAY 10, 1994; DECLARATION OF JEFFRIE MADLAND.

5. Attached hereto as Exhibit "4" is a true and correct copy of a letter I sent on February 10, 1994 to plaintiff's counsel advising plaintiff's counsel that a court order was needed in order for the seized property to be returned to plaintiffs and advising plaintiff's counsel of the *Penal Code* § 1536 procedure.

6. During the course of litigation in this case, it became apparent to me that plaintiffs were going to rely upon their own lack of effort in contending that the West Covina Police Department was wrongfully maintaining custody of their seized property. Consequently, I directed an associate of my firm to prepare and file with the appropriate court a request and proposed order releasing the seized property to the plaintiffs or their counsel. Attached hereto as Exhibit "5" is a true and correct copy of the request which was filed with the Los Angeles County Superior Court on or about May 17, 1994 and signed by Superior Court Judge Charles W. McCoy, Jr., on June 17, 1994.

7. Attached hereto as Exhibit "6" is a true and correct copy of a letter sent via facsimile and mail on June 21, 1994 to plaintiff's counsel by an associate with my firm who was handling the trial of this matter. The exhibit includes a copy of the June 17, 1994 order of Judge McCoy and points out to plaintiff's counsel that the application and order was signed. The letter refers to additional attachments including Detective Ferrari's notebook and a police report regarding the seized starter pistol which I have not included with the exhibit since they are not particularly pertinent to the instant motion.

8. I am informed and believe that plaintiff's counsel was in possession of the search warrant number as early as January 26, 1994 when defendants provided documents to plaintiff's counsel at the early meeting of counsel. Furthermore, the records on file in this case show that plaintiff's counsel had the search warrant number when defendants served their motion for summary judgment on March 15, 1994. Specifically, Exhibit "1" to that motion included the face page of the search warrant which included the search warrant number, i.e., J4286. A true and correct copy of the first page of Exhibit "1" submitted in conjunction with defendant's motion for summary judgment is attached hereto as Exhibit "7". To my knowledge, even after having the search warrant number, plaintiff's counsel did nothing to obtain an order returning the property to plaintiff.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed this 12th day of June, 1996, at Pasadena, California.

/s/ David D. Lawrence
DAVID D. LAWRENCE

DECLARATION OF MICHAEL FERRARI

I, MICHAEL FERRARI, state and declare as follows:

1. I am currently employed as a Detective with the West Covina Police Department and was involved in obtaining the search warrant which resulted in the search of the home of Lawrence Perkins on May 21, 1993.

2. Sometime after June 17, 1994 and before June 24, 1994, I was provided with a Court order signed by Superior Court Judge Charles W. McCoy, Jr., a true and correct copy of which is attached hereto as Exhibit "5". That order authorized the release of six categories of items including cash in the amount of $2,469.00 and a 12 gauge shotgun. On June 24, 1994, all of the items referenced in the June 17, 1994 order were released to Lawrence Perkins, including the cash and a shotgun with the exception of the starter pistol. The starter pistol was not released since I determined from West Covina Crime Report No. 86-6463 that the pistol was reported stolen from the West Covina High School.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed this 12th day of June, 1996 at West Covina, California.

/s/ Michael Ferrari
MICHAEL FERRARI

DEFENDANTS' EXHIBIT 1

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, LAWRENCE PERKINS,	)	
Plaintiffs,	)	No. CV 93-7084 SVW (CTx)
vs.	)	
THE CITY OF WEST COVINA, et al.,	)	
Defendants.	)	

DEPOSITION OF LAWRENCE PERKINS

February 25, 1994

* * *

[p. 205] Q. Was that, would you say, a large part of your emotional distress or a small part of it?

A. That was the – that was the main part of my emotional distress, fear for my family in a unsecured home.

Q. Did you say you haven't talked to anybody at the sheriff's department about the search?

A. L.A. County Sheriff's Department I hadn't.

Q. Have you ever spoken to any person associated with the Orange County Sheriff's Department or Police Department about the search of your home?

A. No.

Q. Did Detective Ferrari ever tell you that he does not object to the return of your money or property?

A. I don't remember him telling me that.

Q. Did anyone ever tell you that the police department is not entitled to return your property without a court order?

A. That they are – repeat the question.

Q. Has anyone ever told you that a court order is required for the release of your property from the West Covina Police Department?

A. I found out later, yes. I believe is [p. 206] the – that man Schimanski told me that.

Q. Do you recall when Lt. Schimanski told you that?

A. No, I don't.

Q. Have you made any effort to get a court order to get your property back?

A. Yes, I have.

Q. And what have you done in that regard?

A. I went to the courts to get a court order.

Q. And when did you do that?

A. I don't remember exact date.

Q. Can you estimate about how long after the search you did that?

A. Maybe about a month after the search.

Q. Was there an application that you were told to fill out?

A. No.

Q. What were you told when you went to the court?

A. It wasn't anything in the courts under my name.

Q. Which court did you go to?

A. West Covina.

Q. Municipal Court?

[p. 207] A. I went to – they told me to go to some little place up there, the – so I could see the judge and give him a – what is that, a book – no, a case number.

Q. Who told you this?

(Ms. Clara Perkins entered the deposition room.)

THE WITNESS: Oh, I don't – I don't remember who told me that, but Ferrari gave me a case number that wasn't a case number at all. And when he finally gave me what's supposed to have been the right case number, I carried it there, and they told me they had nothing in the courts under my name.

Q. BY MS. HOVIND: Do you know which judge, if it was a judge, told you that?

A. No, it wasn't a judge. I – judge – I suppose was the same judge that signed that, Judge Oki.

Q. And did you see Judge Oki?

A. No.

Q. I didn't hear you before that. Did you say you were told to see Judge Oki?

A. It's Ferrari told me I had to see Judge Oki, the one that signed that. But he was supposed to have been on vacation, so I was going to see – they said any judge could release it, so I went to this [p. 208] little room to see about seeing a judge, but they had nothing in the courts under my name.

Q. Has anyone ever told you that you need to fill out an application for a court order to get your property back?

A. No.

Q. Have you ever filled out any documents to try to get a court order to get your property back?

A. No.

Q. And no one has ever told you that's the method to use?

A. No.

Q. If you knew that that's what you had to do, would you do it?

A. I would have done it.

Q. Is there any other property damage that you attribute to the search of you home that day that you haven't yet testified to?

A. No, other than my sofas being cut up. That's about it.

Q. Do you have photographs of the damage to your sofa?

A. No, I did not take photographs of that because it was – it was – I didn't know about it at the time.

* * *

DEFENDANTS' EXHIBIT 2

*531 Balham; La Puente**

Return

813-3239

SEARCH WARRANT:
NOTICE OF SERVICE

Det. Ferrari
814-8526

TO WHOM IT MAY CONCERN:

1. THESE PREMISES HAVE BEEN SEARCHED BY PEACE OFFICERS OF THE (name of searching agency) *West Covina Police* DEPARTMENT PURSUANT TO A SEARCH WARRANT ISSUED ON (date) *5-20-93*, BY THE HONORABLE (name of magistrate) *Dan Oki*, JUDGE OF THE SUPERIOR/MUNICIPAL COURT, *Citrus* JUDICIAL DISTRICT.

---

*Italicized words, numbers, and other characters represent those portions which appear in handwritten form on the original document.

2. THE SEARCH WAS CONDUCTED ON (date) *5-21-93*. A LIST OF THE PROPERTY SEIZED PURSUANT TO THE SEACH WARRANT IS ATTACHED.

3. IF YOU WISH FURTHER INFORMATION, YOU MAY CONTACT:

(name of investigator) *Det. Ferrari or Det. Melnyk* AT (telephone number) *(818) 814-8510*

LT. SCHIMANSKI 814-8516

DEFENDANTS' EXHIBIT 3

DECLARATION OF JEFFRIE MADLAND

I, Jeffrie Madland, state and declare as follows:

1. I am the secretary to Edward M. Fox, attorney for plaintiffs herein. I know the facts herein to be true of my own personal knowledge. If called upon to testify, I could and would testify competently thereto.

2. On May 2, 1994, I contacted the Citrus Municipal court, Criminal Division, and spoke with Diane, court clerk. I indicated that I wanted to obtain the search warrant number and date of return for a warrant that was issued under seal. Diane stated that a "search warrant that is issued under seal is not open to the public." I indicated that I was calling on behalf of the party whose home was searched and she stated that if the search

warrant was under seal, "it would not even be open to the person whose home was searched."

I declare under penalty of perjury that the foregoing is true and correct. Executed this 23rd day of May, 1994, at Los Angeles, California.

/s/ Jeffrie Madland
JEFFRIE MADLAND

DEFENDANTS' EXHIBIT 4

FRANSCELL, STRICKLAND, ROBERTS & LAWRENCE
A PROFESSIONAL CORPORATION

ATTORNEYS AT LAW

[names omitted in printing]

February 10, 1994

Patrick S. Smith, Esq.
Klass, Helman & Ross
11766 Wilshire Boulevard
Suite 350
Los Angeles, CA 90025

Re: *Perkins v. City of West Covina, et al.* Our File No. 0033-011

Dear Mr. Smith:

At the Status Conference, you indicated that the plaintiffs had attempted to obtain the return of money and guns which were taken during the search of their residence. I have spoken with detective Melnyk and he advised that quite early on he informed the plaintiffs that all they needed to do was to request that the Court order

the property returned and it would be returned. I have been advised that there are a few items which will need to be retained for the pending prosecution, but that there will be no objection to the return of the cash or the shot gun. The appropriate procedure is under Penal Code § 1536.

Secondly, I have received the plaintiffs' responses to Request for Production and note that photocopies of photographs are attached. I have not yet had a chance to go through the responses completely, however, the xeroxed copies of photographs are very poor quality and I simply cannot tell what is depicted in those photographs. I would appreciate you providing me with either duplicates of these photographs or allow me to have custody of them for a short period of time so that I can have color xerox copies made. There is a place across the street from my office that can color xerox the photographs. Please let me know within the next week how you prefer to proceed on this.

Finally, as you know, Judge Wilson ordered that defendants file Motions for Summary Judgment by March 15, 1994. In going through the reports which you now have, I note that there are three officers who conducted the search of the plaintiffs' residence, i.e., Officers Nalian, O'Brien and Aldecoa who are not defendants. If you intend to make these officers defendants in this case, please do so as soon as possible so that we do not have to go through multiple rounds of summary judgment motions. In a similar case, i.e., *Harper v. Riverside*, your office waited until after I had filed summary judgment motions to add additional defendants. I am not suggesting that these officers *should* be made defendants, but if

you intend to make them defendants, please do so so that they can be included in the summary judgment motions I will be filing on or before March 15th. If you proceed in a manner like that in *Harper v. Riverside*, I will have to give consideration to seeking expenses under 28 U.S.C. § 1927.

Thank you for your anticipated cooperation.

Very truly yours,

FRANSCELL, STRICKLAND,
ROBERTS & LAWRENCE

/s/ David D. Lawrence
David D. Lawrence

DEFENDANTS' EXHIBIT 5

DAVID D. LAWRENCE, State Bar No. 123039
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ATTORNEYS FOR CITY OF WEST COVINA, DETECTIVE FERRARI, DETECTIVE MELNYK, DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, LIEUTENANT WAYNE HEIECK and LIEUTENANT SCHIMANSKI

LOS ANGELES COUNTY SUPERIOR COURT
POMONA JUDICIAL DISTRICT

PEOPLE OF THE STATE OF CALIFORNIA, Plaintiff, v. MARCUS MARSH, Defendants.	Case No. KA 018341 **REQUEST AND [PROPOSED] ORDER FOR RELEASE OF PROPERTY** (Filed Jun. 17, 1994)

Undersigned counsel represents the City of West Covina, Detective Ferrari, Detective Melnyk, Detective Dan Nalian, Detective Dario Aldecoa, Detective James O'Brien, Lieutenant Wayne Heieck and Lieutenant Schimanski in a civil suit which is pending in the United States District Court, Central District of California entitled *Lawrence Perkins, et al. v. City of West Covina, et al.*, Case No. CV 93-7084 SBW (CTx). This application is made on behalf of Detective Michael Ferrari who was the detective who obtained the search warrant in question. The aforementioned civil suit arises out of the search which was conducted pursuant to Search Warrant No. J4286.

REQUEST FOR RELEASE OF PROPERTY

Items were seized pursuant to Search Warrant No. J4286 from the premises described as the residence located at 531 Balham Avenue, City of La Puente, County of Los Angeles, further described as a single family residential dwelling with a detached garage, tan stucco walls, brown wood trim, and a rock roof. The front door faces

east and the numbers 531 are next to the front door. The items seized are being retained in police custody pursuant to *Penal Code* § 1536.

Petitioner seeks the release of certain of these items from police custody for purposes of disposition of them. The items for which release is sought are:

1. $2,469.00 in United States currency;

2. A starter pistol;

3. A 12-gauge shotgun as described as Item No. 6 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

4. One black case, although police will continue to retain the ammunition located within in, as described as Item No. 15 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

5. One soft gun case with black plastic grip as described as Item No. 17 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

6. Miscellaneous papers and phone books in the names of C. Perkins and L. Perkins as described as Item No. 13 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A".

These items were seized in connection with the above entitled case but are no longer needed for the following reason:

The criminal prosecution against Marcus Marsh, a.k.a. Marcus Winter for homicide was concluded on

April 21, 1994, wherein he was sentenced to twelve years in prison.

The proposed disposition of these items upon release to petitioner is as follows:

Please permit the owners of such property, Clara Mae Perkins or Lawrence Perkins, or their attorneys, Klass, Helman & Ross to retrieve such items.

WHEREFORE, petitioner seeks the release of said items.

I swear under penalty of perjury the foregoing is true and correct to the best of my information and belief.

DATED: May 13, 1994

FRANSCHELL, STRICKLAND, ROBERTS & LAWRENCE

By /s/ David D. Lawrence
David D. Lawrence

Attorneys for CITY OF WEST COVINA, DETECTIVE MICHAEL FERRARI, DETECTIVE DAVID MELNYK, DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, LIEUTENANT WAYNE HEIECK and LIEUTENANT SCHIMANSKI in Case No. CV 93 7084 SVW (CTx)

Attachment Page No. ____

WEST COVINA POLICE DEPARTMENT
PROPERTY INVENTORY SHEET

1 PAPER WORK IN NAME OF MICHAEL MARSH W/M BEDROOM
2 CANG CLOTHES KITCHEN TABLE
3 CANG CLOTHES S/W BEDROOM
4 .38 CAL RD .25 CAL RD, 55 GRD S/W BEDROOM
5 STARTER PISTOL S/W BEDROOM CLOSET
6 SHOT GUN MOSSBERG SIK 897125 12 GA S/W BEDROOM
7 ONE SAFE / MACHINE PISTOL CLIP W/LIVE RDS, WINCHESTER
8 BOX OF .45 CAL AUTO BULLETS, BOX OF FEDERAL .380
9 RD, BOX OF FEDERAL .45 AUTO RDS, 2 .45 AUTO
10 CLIPS, ONE LIVE .38 RD PAPER IN NAME OF
11 TONISHA Y. LEE 4125 S. SEATONS #107
12 ONE BEN CASE W/ 2,469 U.S. CURRENCY S/W BED ROOM
13 MISC. PAPERS & PHONE BOOKS IN NAME OF CHECKING ACCT.
14 THREE .12 GA SHOT GUN RDS
15 ONE BLACK CASE W/ 2 BOXES .357 RDS FIOCCHI
16 1 BOX 'FEDERAL' .357 RDS, 1 BOX WINCHESTER .22 RDS.
17 ONE SOFT GUN CASE W/ BLK PLASTIC GRIPS
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BEST AVAILABLE COPY

ORDER FOR RELEASE OF PROPERTY

TO THE WEST COVINA POLICE DEPARTMENT

Good cause having been shown, it is ordered that the items described above be released from police custody into the custody of Clara Mae Perkins or Lawrence Perkins, or their attorneys, Klass, Helman & Ross.

DATED: 6/17/94

[SEAL]

/s/ Charles W. McCoy, Jr.
CHARLES W. MC COY, JR.
JUDGE OF THE SUPERIOR COURT

DEFENDANTS' EXHIBIT 6

FRANSCHELL, STRICKLAND, ROBERTS & LAWRENCE
A PROFESSIONAL CORPORATION
ATTORNEYS AT LAW

[Names Omitted In Printing]

June 21, 1994

VIA FAX AND REGULAR MAIL

Patrick S. Smith, Esq.
Klass, Helman & Ross
11766 Wilshire Boulevard, Suite 350
Los Angeles, California 90025

Re: Perkins, et al. v. City of West Covina, et al.
Case No. ___ : ___ CV 93 7084 SVW (CTx)

Dear Mr. Smith:

As you are aware, I was not involved with this case prior to May 20, 1994. It was at approximately this time that I received the case for trial.

In any event, I chose five photographs of approximately 40 to present to the jury. I specifically mentioned these photographs on an Exhibit List which was served and filed on May 23, 1994. You waited until the issue presented itself before the Court on June 6, 1994, before you informally requested that I forward these photographs to you.

Based upon your request, I forwarded these photographs, via messenger, on June 7, 1994, to your office. Additionally, I requested that you provide me certain exhibits that were mentioned on your Exhibit List, which I did not

have. As of this date, I have not received anything by way of exhibits from you.

Although I would be happy to forward the remaining photographs, given what transpired in Court yesterday, I cannot. In other words, the issues which arose concerning chain of custody would preclude me from simply tearing open the evidence enveloped and informally distributing the photographs. Please know that the evidence envelopes will be brought to court tomorrow and will be available for your inspection.

I have attached the relevant page from Detective Ferrari's notebook together with a police report regarding the starter pistol which was seized in this case. Although it is standard impeachment-type evidence, I am providing it based upon your informal request.

Finally, I thought you might be interested in the signed order which I received today. As you can see, it took 30 days for the Court to approve the release of your client's money.

Should you wish to discuss the photographs, please do not hesitate to call.

Very truly yours,

FRANSCELL, STRICKLAND,
ROBERTS & LAWRENCE

/s/ Jeff Giordana
JEFF GIORDANO

JG:dj
Enclosure

5-25-94 0945
One Photo From Kitchen Table

Four Gang Photos From Bedroom

Release to Jeff Giordano

DAVID D. LAWRENCE, State Bar No. 123039
FRANSCELL, STRICKLAND, ROBERTS & LAWRENCE
A Professional Corporation
225 South Lake Avenue, Penthouse
Pasadena, CA 91101-3005
Telephone No. (818) 304-7830

ATTORNEYS FOR CITY OF WEST COVINA, DETECTIVE FERRARI, DETECTIVE MELNYK, DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, LIEUTENANT WAYNE HEIECK and LIEUTENANT SCHIMANSKI

LOS ANGELES COUNTY SUPERIOR COURT

POMONA JUDICIAL DISTRICT

PEOPLE OF THE STATE OF CALIFORNIA, Plaintiff, v. MARCUS MARSH, Defendants.	Case No. KA 018341 **REQUEST AND [PROPOSED] ORDER FOR RELEASE OF PROPERTY** (Filed Jun. 17, 1994)

Undersigned counsel represents the City of West Covina, Detective Ferrari, Detective Melnyk, Detective Dan Nalian, Detective Dario Aldecoa, Detective James O'Brien, Lieutenant Wayne Heieck and Lieutenant Schimanski in a civil suit which is pending in the United States District Court, Central District of California entitled *Lawrence Perkins, et al. v. City of West Covina, et al.*, Case No. CV 93-7084 SBW (CTx). This application is made on behalf of Detective Michael Ferrari who was the detective who obtained the search warrant in question. The aforementioned civil suit arises out of the search which was conducted pursuant to Search Warrant No. J4286.

REQUEST FOR RELEASE OF PROPERTY

Items were seized pursuant to Search Warrant No. J4286 from the premises described as the residence located at 531 Balham Avenue, City of La Puente, County of Los Angeles, further described as a single family residential dwelling with a detached garage, tan stucco walls, brown wood trim, and a rock roof. The front door faces east and the numbers 531 are next to the front door. The items seized are being retained in police custody pursuant to *Penal Code* § 1536.

Petitioner seeks the release of certain of these items from police custody for purposes of disposition of them. The items for which release is sought are:

1. $2,469.00 in United States currency;

2. A starter pistol;

3. A 12-gauge shotgun as described as Item No. 6 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

4. One black case, although police will continue to retain the ammunition located within as described as Item No. 15 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

5. One soft gun case with black plastic grip as described as Item No. 17 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A";

6. Miscellaneous papers and phone books in the names of C. Perkins and L. Perkins as described as Item No. 13 on the West Covina Police Department Property Inventory Sheet, attached hereto as Exhibit "A".

These items were seized in connection with the above entitled case but are no longer needed for the following reason:

The criminal prosecution against Marcus Marsh, a.k.a. Marcus Winter for homicide was concluded on April 21, 1994, wherein he was sentenced to twelve years in prison.

The proposed disposition of these items upon release to petitioner is as follows:

Please permit the owners of such property, Clara Mae Perkins or Lawrence Perkins, or their attorneys, Klass, Helman & Ross to retrieve such items.

WHEREFORE, petitioner seeks the release of said items.

I swear under penalty of perjury the foregoing is true and correct to the best of my information and belief.

DATED: May 13, 1994

FRANCELL, STRICKLAND,
ROBERTS & LAWRENCE
By /s/ David D. Lawrence
David D. Lawrence

Attorneys for CITY OF WEST COVINA, DETECTIVE MICHAEL FERRARI, DETECTIVE DAVID MELNYK, DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, LIEUTENANT WAYNE HEIECK and LIEUTENANT SCHIMANSKI in Case No. CV 93 7084 SVW (CTx)

ORDER FOR RELEASE OF PROPERTY

TO THE WEST COVINA POLICE DEPARTMENT

Good cause having been shown, it is ordered that the items described above be released from police custody

into the custody of Clara Mae Perkins or Lawrence Perkins, or their attorneys, Klass, Helman & Ross.

DATED: 6/17/94

[SEAL]

/s/ Charles W. McCoy, Jr.
CHARLES W. MC COY, JR.
JUDGE OF THE SUPERIOR COURT

DEFENDANTS' EXHIBIT 7

J4286

Search Warrant No.

STATE OF CALIFORNIA – COUNTY OF LOS ANGELES
SEARCH WARRANT AND AFFIDAVIT

THE PEOPLE OF THE STATE OF CALIFORNIA TO ANY SHERIFF, POLICEMAN OR PEACE OFFICER IN THE COUNTY OF LOS ANGELES:

proof by affidavit having been made before me by

___ Michael Ferrari _____ that there is probable cause
(name of affiant)
to believe that the property described herein may be found at the locations set forth herein and that it is lawfully seizable pursuant to Penal Code Section 1524 as indicated below by "X"(s) in that it:

_____ was stolen or embezzled

XXX was used as the means of committing a felony

XXX is possessed by a person with the intent to use it as a means of committing a public offense or is possessed by another to whom he may have delivered it for the purpose of concealing it or preventing its discovery

XXX is evidence which tends to show that a felony has been committed or a particular person has committed a felony

_____ is evidence which tends to show that sexual exploitation of a child, in violation of Section 3133.3, has occurred or is occurring:

YOU ARE THEREFORE COMMANDED TO SEARCH:

1) The residence located at 531 Balham Avenue, city of La Puente, county of Los Angeles, further described as a single family residential dwelling with a detached garage, tan stucco walls, brown wood trim, and a rock, roof. The front door faces east, and the numbers 531 are next to the front door.

2) The residence located at 1410 West Delhaven Avenue, city of West Covina, county of Los Angeles, further described as a single family residential dwelling, with brown stucco walls, dark brown wood trim, a brown composition roof, and a[n] attached garage. The numbers 1410 appear on the wall next to the front door, and on the curb directly in front of the residence.

3) 736 Mustang circle, city of Walnut, county of Los Angeles, further described as a two story single family dwelling with an attached garage, white stucco walls, with brown wood trim. The numbers 736 are painted on the curb directly in front of the residence on the curb.

4) 13921 Francisquito room number 131, city of Baldwin Park, county of Los Angeles, also known as the "Travelodge Motel", a three story multi-unit building, with tan stucco walls and a red tile roof. Room number 131 is located on the east side of the building on the ground level. The numbers 131 are on the door.

The search shall induce any and all rooms, attics, basements, garages and other parts ther[e]in. The search shall also include any and all storage units, trash receptacles and out buildings on the property of the [ ] residence.

* * *

[PROOF OF SERVICE Omitted In Printing]

PATRICK S. SMITH, Bar # 120220
KLASS, HELMAN & ROSS
11766 Wilshire Blvd., Suite 350
Los Angeles, California 90025
(310) 277-2224

Attorneys for Plaintiffs,
LAWRENCE PERKINS, CLARA PERKINS
AND APRIL PERKINS

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, Lawrence Perkins, Plaintiffs, v. THE CITY OF WEST COVINA, a political subdivision of the State of California; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, a political subdivision of the State of California, and DOES 1 through 50, inclusive, Defendants.	) Case No. CV93-7084 SVW (CTx)) OPPOSITION TO MOTION FOR SUMMARY JUDGMENT BY CITY OF WEST COVINA; MOTION FOR SUMMARY JUDGMENT; DECLARATION OF PATRICK S. SMITH) [Statement of Genuine Issues and Separate Statement of Uncontroverted Facts and Conclusions of Law filed concurrently herewith]) (Filed June 17, 1996)) Date: June 24, 1996) Time: 1:30 p.m.) Ctrm: 6

Plaintiffs hereby file the[ir] Opposition to Defendant City of West Covina's Motion for Summary Judgment.

Dated: June 17, 199[6]

KLASS, HELMAN & ROSS

By /s/ Patrick S. Smith
PATRICK S. SMITH
Attorneys for Plaintiffs

* * *

PLAINTIFFS' EXHIBIT A

Search Warrant No.

STATE OF CALIFORNIA – COUNTY OF LOS ANGELES
SEARCH WARRANT AND AFFIDAVIT

THE PEOPLE OF THE STATE OF CALIFORNIA TO ANY SHERIFF, POLICEMAN OR PEACE OFFICER IN THE COUNTY OF LOS ANGELES:

proof, by affidavit, having been made before me by ___ Michael Ferrari _____ that there is probable cause to
(name of affiant)
believe that the property described herein may be found at the locations set forth herein and that it is lawfully seizable pursuant to Penal Code Section 1524 as indicated below by "X"(s) in that it:

_____was stolen or embezzled
__XXX__was used as the means of committing a felony

__XXX__ is possessed by a person with the intent to use it as a means of committing a public offense or is possessed by another to whom he may have delivered it for the purpose of concealing it or preventing its discovery
__XXX__ is evidence which tends to show that a felony has been committed or a particular person has committed a felony
_____ is evidence which tends to show that sexual exploitation of a child, in violation of Section 3133.3, has occurred or is occurring:

YOU ARE THEREFORE COMMANDED TO SEARCH:

1) The residence located at 531 Balham Avenue, city of La Puente, county of Los Angeles, further described as a single family residential dwelling with a detached garage, tan stucco walls, brown wood trim, and a rock roof. The front door faces east, and the numbers 531 are next to the front door.

2) The residence located at 1410 West Delhaven Avenue, city of West Covina, county of Los Angeles, further described as a single family residential dwelling, with brown stucco walls, dark brown wood trim, a brown composition roof, and a[n] attached garage. The numbers 1410 appear on the wall next to the front door, and on the curb directly in front of the residence.

3) 736 Mustang circle, city of Walnut, county of Los Angeles, further described as a two story single family dwelling with an attached garage, white stucco walls, with brown wood trim. The numbers 736 are painted on the curb directly in front of the residence on the curb.

4) 13921 Francisquito room number 131, city of Baldwin Park, county of Los Angeles, also known as the "Travelodge Motel", a three story multi-unit motel building, with tan stucco walls and a red tile roof. Room number 131 is located on the east side of the building on the ground level. The numbers 131 are on the door.

The search shall include any and all rooms, attics, basements, garages and other parts ther[e]in. The search shall also include any and all storage units, trash receptacles and out buildings on the property of the [ ] residence.

FOR THE FOLLOWING PROPERTY:

To include any evidence of street gang membership or affiliation with a street gang; said paraphernalia to include, but not limited to, any reference to Neighborhood Crips gang (NHC); said items to include any drawings or miscellaneous writings, or objects, or graffiti depicting gang members' names, initials, logos, monikers, slogans, or containing mention of street gang membership, affiliation, activity, or identity; any paintings, drawings, photographs or photograph albums, depicting persons, vehicles weapons or locations which may appear upon observation to be relevant on the question of gang membership or association, or which may depict items sought and/or believed to be evidence in the case being investigated with this warrant, or which may depcit evidence of any criminal activity; any newspaper clippings tending to relate details or reference to any crime or crimes of violence; and any address books, listed of, or single reference to, addresses or telephone numbers of persons who may later be determined to belong to or to be affiliated with any street gangs.

Any firearms of the following caliber; 9MM. In addition to any firearms already described, any and all firearms for which the person in possession of said firearms cannot tender proof of ownership at the time of service.

To include any miscellaneous gun pieces, ammunition, gun-cleaning items or kits, holsters, ammunition belts, original box packaging, targets, expended pieces of lead, any photographs of firearms, or any paperwork showing the purchase, storage, disposition, or dominion and control over any guns, any ammunition, or any of the above items.

Your affiant requests permission to seize any articles of personal property tending to establish the identity of persons who have dominion and control over the premises, automobiles, or items to be seized, including, but not limited to, rent receipts, utility bills, telephone bills, miscellaneous addressed mail, personal letters, personal identification, keys, purchase receipts, sales receipts, tax statements, photographs, vehicle pink slips, and vehicle registration. Your affiant believes that these items will tend to connect the premises, persons, locations, and vehicles to be searched with t[h]e items to be seized and the case being investigated. Your affiant believes these items are not the type normally disposed of and can therefore be found at the location(s) to be searched.

AND SEIZE IT IF FOUND and bring it forthwith before me, or this court, at the courthouse of this court. This Search Warrant and Affidavit was sworn to and subscribed before me on

5/20/93 at 2:20 ~~a.m.~~/p.m. Wherefore, I find probable cause for the issuance of this Search Warrant and do issue it.

Dan T. Oki
(signature of magistrate)
Judge of the ~~Superior~~/Municipal Court. _ CITRUS ___ Judicial District

---

(AFFIDAVIT)

___ Michael Ferrari ___, being sworn, says that on the basis of (name of affiant) information contained within the Search Warrant and Affidavit and the attached and incorporated Statement of Probable Cause, he has probable cause to believe and does believe that the property sought pursuant to the Search Warrant is lawfully seizable pursuant to Penal Code Section 1524 and is now located at the locations set forth in this Search Warrant. Wherefore, affiant prays that this Search Warrant be issued and that it may be served at any time of day OR NIGHT (strike OR NIGHT if not applicable).

Michael Ferrari
(signature of affiant)

---

*Unless endorsed for nighttime service, this warrant can be served only between 7:00 a.m. and 10:00 p.m.

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, LAWRENCE PERKINS, Plaintiffs, vs. THE CITY OF WEST COVINA, et al., Defendants.	No. CV 93-7084 SVW (CTx)

DEPOSITION OF LAWRENCE PERKINS, taken on behalf of Defendants, at 225 South Lake Avenue, Pasadena, California, commencing at 10:05 A.M., Friday, February 25, 1994, before Linda J. Engstrom, CSR #5307, pursuant to Notice.

* * *

[p. 17] A. City of Industry.

Q. Do you know the actual address?

A. I believe it's 918 Stimson.

Q. And in what city, City of Industry?

A. Yes.

Q. What is the name of a supervisor at –

MR. SMITH: I'm going to – go ahead.

MS. HOVIND: There was a lost-earnings claim here.

MR. SMITH: Okay.

THE WITNESS: Any supervisor or my immediate supervisor at that time?

MR. SMITH: That's what I was going to object to as to vague, but go ahead.

Q. BY MS. HOVIND: Give me the name of your employer again.

A. United Stationers.

Q. United Stationers.

And what was the name of your immediate supervisor in May of 1993?

A. Ron Alvarez.

Q. How is his last name spelled?

A. I don't know.

Q. Do you know his telephone number?

A. No.

[p. 18] Q. Do you know any telephone number to United Stationers?

A. Yes.

Q. What is that?

A. 961-0011.

Q. And the area code?

A. (818).

Q. And what do you do at United Stationers?

A. I am a machine operator, stocker.

Q. And how long have you worked at United Stationers?

A. Since November of '85.

Q. Do you work full time?

A. Yes.

Q. Have you worked full time since November of 1985?

A. Yes.

Q. Are you paid on an hourly basis or by salary?

A. Hourly.

Q. What was your hourly wage in May of 1993?

A. Ten – ten-something an hour.

Q. How many children do you have?

A. One. One – I have three in all, but

* * *

[p. 36] Police Department.

Q. BY MS. HOVIND: No, how did you come to learn or understand that Lt. Schimanski was the supervisor of the detectives that searched your home?

A. When I – I called West Covina and asked for their supervisor and they told me who he was.

Q. Do you recall the gist of the conversation that occurred with Lt. Schimanski that day?

A. Yes, I do.

Q. Can you tell me in general what was said by each of you?

A. Yes. I talked to Ferrari, and he told me I could come get my personal belongings, and when I went to get them, I couldn't get them. So when I went back home, I called and asked for his boss, and that's when I got him over the telephone. And he told me that they had no right telling me that I could come get my personal belongings.

Q. Which particular belongings did you want to –

A. All of them.

Q. Okay. Was there anything else that Lt. Schimanski told you during that conversation that you now recall?

[p. 37] A. I don't remember.

Q. Is it your specific recollection that Lt. Schimanski told you during that conversation that he had personally been involved in the search of your home?

A. Yes, he told me he had been out to my home.

Q. Did he say whether it was during the search at issue or subsequent to that?

A. All he said, he had been out to my home.

Q. Do you recall the context of that statement, why he was talking about the fact he'd been out to your home?

A. No.

Q. Have you had any other conversations with Lt. Schimanski?

A. Since that day?

Q. Right.

A. I don't remember.

Q. Do you know who Mike Ferrari is?

A. Yes.

Q. And who is he?

A. One of the detectives that entered my home.

Q. Have you ever met any of these three [p. 38] people prior to your home being searched –

A. No –

Q. – in May of 1993?

A. – no.

Q. Have you seen any of them since the day your home was searched?

A. Sure.

Q. And who have you seen since the search?

A. Ferrari, Mel[ny]k. That's it, just those two.

Q. Just those two?

A. Uh-huh.

(Ms. April Perkins and Ms. Brown left the deposition room.)

Q. BY MS. HOVIND: Do you have any reason to believe that any of these three individuals has any personal prejudice or ill will against you or your family members?

A. No.

Q. Let's go through the photographs of your home, and I'm going to ask you some questions about them.

If you'll look at the photograph that's been marked No. 1 – well, you know, before we do all

* * *

[p. 51] Q. We'll get to those, then, when we go through the photographs.

What was your thought when you saw the damaged door?

A. I thought someone had broke in.

Q. What was your next step? Did you continue inside the home, or did you leave?

A. I walked through the house.

Q. What room do you enter when you go through that side door?

A. A little hallway where the washing machine and then the kitchen.

Q. When you saw the little room with the washing machine in it, did you see anything misplaced or unusual?

A. Not in that area.

Q. You then proceeded into the kitchen?

A. Uh-huh.

Q. Was it at that time that you saw this document that –

A. No –

Q. Okay.

A. – no, I didn't.

Q. How long was it after you entered your home that you saw this document referred to as "Search [p. 52] Warrant: Notice of Service"?

A. I can't give you approximate time because I went through the house looking, making sure there wasn't anyone in the house, just taking my time looking, making sure, because I thought it was just a regular break-in.

Q. Did you own a gun at that time?

A. Yes, I did.

Q. Did you look for that gun?

A. The first thing I looked for was that shotgun.

Q. Let's take it step by step.

How many rooms do you have at your residence at 531 Balham?

A. Including the living room, the kitchen and the bathroom, or just the bedrooms?

Q. All the rooms.

A. Kitchen, living room, bedroom, bedroom, bedroom, bathroom, six rooms.

Q. Three bedrooms –

A. Three bedrooms –

Q. – and one bathroom?

A. – one bathroom, kitchen and living room.

Q. When you walked into the kitchen area, [p. 53] that was unusual?

A. No.

Q. What is the next room that you went into?

A. My bedroom.

Q. Was there anything unusual in your bedroom?

A. Entering the bedroom was unusual.

Q. What was it about the entry to the bedroom that was unusual?

A. The door was broken open.

Q. Had the door been closed when you last were home?

A. Closed and locked.

Q. Is there a reason you lock your bedroom door?

A. Sure.

Q. Why is that?

A. No one goes in our bedroom we not there. We keep it locked all times.

Q. Is there a reason you keep that room locked –

A. Yes –

Q. – and not others?

A. – because –

* * *

[p. 59] Q. Go ahead.

A. Because that's where I keep my shotgun at, and money.

Q. Do you normally keep your cash at home?

A. No.

Q. When you say "money," what do you mean?

A. We were saving money for my wife's trip to see her mother.

Q. How much money did you have saved for that purpose?

A. We had $2500 saved for that purpose. She spent $40 of that.

Q. Do you have a checking or savings account at any bank?

A. Yes, I do.

Q. Which do you have?

(Ms. April Perkins and Ms. Brown left the deposition room.)

THE WITNESS: Well –

MR. SMITH: I'm going to –

Q. BY MS. HOVIND: Is there a reason that that money was not in the bank and was instead in your home?

A. Yes, it was.

[p. 60] Q. And what is that reason?

A. I was going to buy the tickets for them to go to Alabama.

(Ms. Brown entered the deposition room.)

Q. BY MS. HOVIND: So you'd planned to purchase the tickets with that cash?

A. Uh-huh.

Q. Is that a "yes"?

A. Yes.

Q. Had that money been in a bank and been withdrawn?

A. No.

Q. So you had always kept that amount of cash at home?

A. We saved the money out of our checks.

Q. Had any of that $2400 ever been in the bank?

A. No.

Q. Is there a reason that it wouldn't be in the bank?

A. Yes, it was.

Q. And what is that?

A. I was going to purchase the tickets for my wife and my daughter and her grandkids to go and [p. 61] visit her mother.

Q. How long had that amount of cash been in your bedroom?

A. Not that long.

Q. Can you estimate for me how long?

A. I cannot estimate. How long it takes you to save up money.

Q. You can't estimate about how much you saved a month toward that purpose?

A. I originally received a check from a escrow account of $1700, and that was in there.

Q. Do you know when you received that check?

A. No, I don't.

Q. So you cashed that check and then brought the $1700 home; correct?

A. Sure, yes.

Q. Can you give me any estimate as to how long you had had that amount of cash, say over $1,000, in your bedroom?

A. No, I cannot.

Q. Would you say it was more than a month?

A. Yes, it was more than a month.

Q. More than two months?

A. I cannot say.

[p. 62] Q. Did you purchase the tickets to Alabama?

A. No.

Q. What was it that you noticed about the door to the bedroom? Can you tell me specifically how it was broken.

A. Looked like somebody had kicked it.

Q. Was there a hole or a dent in the door?

A. No, no hole. Where the lock goes, it was broken right in there. We have pictures of that.

Q. Was the door open or closed to the bedroom?

A. When I came home?

Q. Right.

A. It was open.

Q. Did you notice anything unusual inside the bedroom?

A. Yes, I did.

Q. Can you tell me everything that you noticed that was out of place in the bedroom.

A. Everything was out of place in the bedroom.

Q. Can you give me some idea of what those items were?

A. Yes, my clothes, papers, stuff that I had underneath the waterbed, everything.

* * *

[p. 183] A. Maybe – maybe about – during this time?

Q. Just during the whole year.

A. Oh, mostly just during that time.

Q. So you worked eight hours a day for most of 1993?

A. Yes, eight, nine, ten, sometime twelve.

Q. So you left work early during those two weeks because you were preoccupied – would that be fair to say – with the search?

A. Yes.

Q. Do you know how much income you lost from leaving work early due to the search?

A. Not exactly. I could get that information.

MR. SMITH: Let me just take a quick break.

(A recess was taken.)

Q. BY MS. HOVIND: You mentioned that you first contacted Detective Ferrari right after you came home on the day of the search; correct?

A. Uh-huh, yes.

Q. And you've already related the substance of that conversation –

A. Yeah –

Q. – correct?

[p. 184] A. – uh-huh.

Q. And you said that when your wife got home, you would go to see him?

A. Uh-huh.

Q. Did you do that?

A. Yes.

Q. Did you go that day?

A. Yes.

Q. With your wife?

A. Yes.

Q. And did the three of you speak?

A. No.

Q. What happened?

A. He left before we got there.

Q. Did you know what time he would be there until that day?

A. He said he would be there until we got there.

Q. And what time did you go to the station?

A. Maybe around 4:30, something like that, time my wife got in.

Q. Did you call before going to the station?

A. Sure, I – I talked to him earlier. He said he would be waiting to talk to us, he wanted to [p. 185] talk to us.

Q. Was there any discussion at that time about when you would go to the station?

A. Yes, I told him just as soon as my wife got in from work.

Q. Did you have any discussion about what time that would be?

A. I told him it would be around 4:00, 4:30.

Q. Did you subsequently meet with or talk to Detective Ferrari?

A. Yes, the following Monday.

Q. Did you call him on that day?

A. I don't quite remember. Oh, no, they told us that he would be in that morning, Monday. He wouldn't be back in till Monday morning.

Q. Did you go to the station on Monday morning?

A. Yes.

Q. Who did you go with? Did you go with anybody to the station?

A. My wife.

Q. Did you meet with Detective Ferrari at that time?

A. Oh, yes.

[p. 186] Q. Do you recall what you said to him and what he said to you, in general, during that meeting?

A. I – I asked him why was – why did he do this, and the only thing he would tell me was that my house was involved in a robbery and a homicide.

Q. Did he tell you any names or any more information?

A. He told me – all – he told me that nothing or anyone in my home was involved in anything. Now, he told me that and I asked him what – give me my – give me my property back, and he didn't do it.

Q. Did he ever mention the name Marcus Marsh to you?

A. No.

Q. Has anyone since that time ever mentioned Marcus Marsh to you –

A. No –

Q. – in connection with the search of your home?

A. – no.

MR. SMITH: Let me just take a quick –

MS. HOVIND: Counsel is conferring with the deponent.

MR. SMITH: Yes, that's why I said I would like to take a break.

* * *

[p. 195] me, that, but just he gave me a number to call the property department at West Covina Police Department. When I called there, the guy that I was supposed to talk to told me that he wanted to see me. And when I went down – that's when he was telling me that he had a witness that was willing to come to court and say that Marcus discussed something that happened at my kitchen table with me and my wife. If I would just agree to that and say that he discussed this with us, he would get my stuff back for me – from the –

Q. Let me back up a second.

When Detective Ferrari referred to a son, did he refer to that son by name?

A. No, he didn't.

Q. So he never gave you a name? He just said, "I hope you don't have a son" –

A. No, he said, "I hope you raise your daughter better than you did – better than your son."

Q. And there was never any mention at any time of that son's name?

A. No.

Q. Was it when you were meeting in person with Detective Ferrari or when you were speaking to him on the phone that he was asking you to make up a conversation or testify to a conversation that occurred [p. 196] between Marcus Marsh and your family?

A. A conversation that supposedly occurred between Marcus and my family?

Q. Right.

A. It was in person.

Q. Were you alone with him at that time?

A. No, April were with me.

Q. April is?

A. My daughter.

Q. So the three of you were meeting with Detective Ferrari?

A. The two of us.

Q. Right, I'm sorry. You're right.

And tell me, to the best of your ability, his exact words when he was telling you how you could get your property back.

MR. SMITH: He just told you that.

MS. HOVIND: I want to hear it again.

MR. SMITH: Well, I'm going to object.

MS. HOVIND: I didn't catch it before, and I want to ask follow-up questions about it.

MR. SMITH: Well, all right. Go ahead.

THE WITNESS: He – if I –

MR. SMITH: You have to pay attention to the answers; otherwise, we'll be here all day asking [p. 197] questions over again.

MS. HOVIND: We may be here all day.

THE WITNESS: If I would say that Marcus discussed whatever happened when it happened with me and my wife.

Q. BY MS. HOVIND: Let me stop you there. Did he say what this discussion was about?

A. No.

Q. So those were his exact words?

A. I can't say those were his exact words, but he never did say what supposedly had happened.

Q. Okay, Go on.

A. And he had a witness that would testify in court that – that he discussed this with me and my wife sitting at our kitchen table.

Q. But he never said what the discussion was about?

A. He never did say what the discussion was about.

Q. Did you ask what the discussion was about?

A. I just told him no one had discussed any discussion with me and I wasn't going to lie on anyone.

Q. So you told him that Marcus Marsh had [p. 198] never discussed anything with you at the kitchen table?

A. Never discussed anything at the kitchen table. In fact, I hadn't even seen Marcus or talked to him.

Q. Do you know what time period Detective Ferrari was referring to when he discussed this conversation at the kitchen table?

A. No.

Q. Did you ask him?

A. Have – no, I didn't. He just said he would get my stuff back if I said he discussed whatever I told that happened with me and my wife.

MR. SMITH: Let me just take a break.

(A recess was taken.)

Q. BY MS. HOVIND: What did you say to Detective Ferrari when he made those statements to you?

A. Can you repeat the statement, please.

Q. When he made the statements about if you testify that that conversation occurred at the kitchen table between Marcus Marsh and you and your wife, what did you tell him when he made that statement to you?

A. I told him I couldn't – I didn't know anything about that, you know. I couldn't answer that. I couldn't implicate anyone in that, something I didn't know anything about, and he hadn't discussed anything [p. 199] with me and my wife.

Q. When you say "anything," what do you mean?

A. I mean, I was under the impression that since he was saying that my home was involved in a homicide and a robbery, he may have been trying to say that Marcus did that and he wanted me to implicate Marcus in that. Just to get my stuff back, I'm not going to lie on anyone.

Q. Was that your assumption –

A. That was my –

Q. – or did you ask?

A. That was my assumption.

Q. So when you said that Marcus Marsh had never discussed "anything" with you, you meant that he had never discussed a homicide or a burglary with you?

A. Right.

(Ms. April Perkins
and Ms. Brown left
the deposition room.)

Q. BY MS. HOVIND: How many meetings have you had with Detective Ferrari since the date of the search?

A. Maybe around three.

Q. And were all those meetings to try and

* * *

[p. 205] Q. Was that, would you say, a large part of your emotional distress or a small part of it?

A. That was the – that was the main part of my emotional distress, fear for my family in a unsecured home.

Q. Did you say you haven't talked to anybody at the sheriff's department about the search?

A. L.A. County Sheriff's Department I hadn't.

Q. Have you ever spoken to any person associated with the Orange County Sheriff's Department or Police Department about the search of your home?

A. No.

Q. Did Detective Ferrari ever tell you that he does not object to the return of your money or property?

A. I don't remember him telling me that.

Q. Did anyone ever tell you that the police department is not entitled to return your property without a court order?

A. That they are – repeat the question.

Q. Has anyone ever told you that a court order is required for the release of your property from the West Covina Police Department?

A. I found out later, yes. I believe is [p. 206] the – that man Schimanski told me that.

Q. Do you recall when Lt. Schimanski told you that?

A. No, I don't.

Q. Have you made any effort to get a court order to get your property back?

A. Yes, I have.

Q. And what have you done in that regard?

A. I went to the courts to get a court order.

Q. And when did you do that?

A. I don't remember exact date.

Q. Can you estimate about how long after the search you did that?

A. Maybe about a month after the search.

Q. Was there an application that you were told to fill out?

A. No.

Q. What were you told when you went to the court?

A. It wasn't anything in the courts under my name.

Q. Which court did you go to?

A. West Covina.

Q. Municipal court?

[p. 207] A. I went to – they told me to go to some little place up there, the – so I could see the judge and give him a – what is that, a book – no, a case number.

Q. Who told you this?

(Ms. Clara Perkins entered the deposition room.)

THE WITNESS: Oh, I don't – I don't remember who told me that, but Ferrari gave me a case number that wasn't a case number at all. And when he finally gave me what's supposed to have been the right case number, I carried it there, and they told me they had nothing in the courts under my name.

Q. BY MS. HOVIND: Do you know which judge, if it was a judge, told you that?

A. No, it wasn't a judge. I – judge – I suppose was the same judge that signed that, Judge Oki.

Q. And did you see Judge Oki?

A. No.

Q. I didn't hear you before that. Did you say you were told to see Judge Oki?

A. It's Ferrari told me I had to see Judge Oki, the one that signed that. But he was supposed to have been on vacation, so I was going to see – they said any judge could release it, so I went to this [p. 208] little room to see about seeing a judge, but they had nothing in the courts under my name.

Q. Has anyone ever told you that you need to fill out an application for a court order to get your property back?

A. No.

Q. Have you ever filled out any documents to try to get a court order to get your property back?

A. No.

Q. And no one has ever told you that's the method to use?

A. No.

Q. If you knew that that's what you had to do, would you do it?

A. I would have done it.

Q. Is there any other property damage that you attribute to the search of your home that day that you haven't yet testified to?

A. No, other than my sofas being cut up. That's about it.

Q. Do you have photographs of the damage to your sofa?

A. No, I did not take photographs of that because it was – it was – I didn't know about it at the time.

• • •

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, minor, by and through her Guardian ad Litem, LAWRENCE PERKINS,	)	
Plaintiffs,	)	No. CV 93-7084 SVW (CTx)
vs.	)	
THE CITY OF WEST COVINA, et al.,	)	
Defendants.	)	

DEPOSITION OF CLARA MAE PERKINS

February 25, 1994

• • •

[p. 15] THE WITNESS: No.

Q. BY MS. HOVIND: To your knowledge, have any of your children ever been arrested by the West Covina Police Department?

MR. SMITH: Well, I think that – you can ask about April, but I think it's too tenuous. The case is still on hold. There's a bias if your family's been arrested, so I will let you ask it about April but not with regard to any of the other ones.

Q. BY MS. HOVIND: I assume that your nine-year-old daughter, April, hasn't been arrested.

A. No.

Q. Did you graduate from high school?

A. Yes.

Q. And what year was that in?

A. '64.

Q. Have you received any post-high-school training or education?

A. No.

Q. And you're presently employed; correct?

A. Yes.

Q. And where is that at?

A. Stanley Hardware in San Dimas.

Q. Do you know the address of Stanley Hardware?

[p. 16] A. 300 Arrow Highway.

Q. What is your telephone number there?

A. The area code (909) 599-6881.

Q. Did you miss any work – well, let me ask you first: Were you working at Stanley Hardware at the time of the search?

A. Yes.

Q. How long have you worked at Stanley Hardware?

A. Twenty-one going – it will be twenty-two years in March.

Q. That's impressive. What do you do there?

A. I run a machine.

Q. Did you miss any work at Stanley Hardware as a result of the search in this case?

A. I took off one day.

Q. Was that considered a sick day, a personal day, or did you receive less in your paycheck as a result?

A. Yeah, I took one of my vacation days.

Q. Are you paid by the hour or salary?

A. Hour.

Q. And how much did you make per hour in April of 1993?

* * *

[p. 75] A. Yeah, – Yeah, yeah.

Q. Is it your understanding that the County of Los Angeles paid you that money to compensate you for the damage to your interior and exterior doors?

A. For the – yeah, damage.

Q. Have you ever been a party to a lawsuit before?

A. No.

Q. Did you experience any emotional problems as a result of this search?

A. No more than just being upset because I couldn't – couldn't go see my mother and take my kids. Basically, that was all, about it.

Q. Was that the day of the search you were precluded from doing those things?

A. Well, see, they took my money. I thought I could get it back and go on, but then I found out they wasn't even going to give it back to us.

Q. Who were you going to go visit?

A. My mother.

Q. And where did she live?

A. Alabama.

Q. Were you going to visit anybody else?

A. It was just her.

Q. Other than being upset at not being able

* * *

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

LAWRENCE PERKINS, CLARA PERKINS, APRIL PERKINS, MINOR, BY AND THROUGH HER GUARDIAN AD LITEM, LAWRENCE PERKINS,	)	
PLAINTIFFS,	)	NO. CV93-7084 SVW (CTX)
VS.	)	
THE CITY OF WEST COVINA, A POLITICAL SUBDIVISION OF THE STATE OF CALIFORNIA; DETECTIVE FERRARI; DETECTIVE MELNYK; LIEUTENANT SCHIMANSKI; THE COUNTY OF LOS ANGELES, A POLITICAL SUBDIVISION OF THE STATE OF CALIFORNIA, AND DOES 1 THROUGH 50, INCLUSIVE,	)	
DEFENDANTS.	)	

DEPOSITION OF MICHAEL FERRARI

TAKEN ON

TUESDAY, FEBRUARY 22, 1994

REPORTED BY: VICTORIA MELEKIAN

CSR NO. 6996

* * *

[p. 77] PERKINS, DID YOU, IN BETWEEN THOSE TWO PERIODS, EVER TALK TO A SUPERVISOR CONCERNING THE RETURN OF ANY OF PERKINS' PROPERTY?

A. I DON'T BELIEVE IT WAS AT THAT TIME THAT I SPOKE TO A SUPERVISOR.

Q. APPROXIMATELY A WEEK AFTER YOU FIRST SPOKE WITH MR. PERKINS, YOU, AGAIN, HAD COMMUNICATION WITH HIM; IS THAT RIGHT?

A. CORRECT.

Q. DID HE COME TO THE STATION?

A. I BELIEVE HE DID.

Q. DID HE BRING WITH HIM RECEIPTS?

A. YES.

Q. AT THAT TIME YOU TOLD HIM HOW TO GO ABOUT GETTING A COURT ORDER TO GET HIS PROPERTY BACK; IS THAT RIGHT?

A. CORRECT.

Q. DID YOU TALK TO ANY SUPERVISOR ON THAT SUBJECT, MR. PERKINS GETTING HIS PROPERTY BACK BY A COURT ORDER AT ANY TIME AFTER THIS MEETING A WEEK AFTER THE EXERCISE OF THE WARRANT WHERE HE CAME IN AND HE SHOWED YOU HIS THINGS?

A. I BELIEVE AFTER THE SECOND MEETING, MR. PERKINS CONTINUED TO CALL BACK BECAUSE HE HAD SOME PROBLEMS WITH GETTING A COURT ORDER. I [p. 78] BELIEVE THERE WAS A POINT IN

TIME WHERE I WENT TO MY SERGEANT AND EXPLAINED THAT HE MAY BE GETTING A CALL FROM MR. PERKINS BECAUSE HE WAS NOT HAPPY WITH ME.

Q. DID MR. PERKINS INDICATE TO YOU WHAT PROBLEMS HE WAS HAVING GETTING THE COURT ORDER?

A. YES, HE DID.

Q. WHAT DID HE SAY?

A. HE SAID THERE WAS NO CASE FILED AND THAT HE COULD NOT GET A COPY OF THE SEARCH WARRANT.

Q. DID YOU OFFER TO PROVIDE HIM WITH A COPY OF THE WARRANT?

A. NO, I DID NOT.

Q. WHEN MR. PERKINS TOLD YOU HE WAS HAVING DIFFICULTY BECAUSE HE COULDN'T GET A COPY OF THE WARRANT AND THERE WAS NO CASE FILED, WHAT INFORMATION OR COMMUNICATION DID YOU HAVE WITH MR. PERKINS ON THE SUBJECT OF GETTING HIS PROPERTY BACK?

A. I GOT A LITTLE MIXED UP IN TIMES. HE INITIALLY CAME BACK AND SAID HE COULD NOT FIND ANY RECORD OF THE CASE BEING FILED WHICH WAS CORRECT, THERE WAS NO CASE FILED AT THAT POINT IN TIME. THERE WAS A SEARCH WARRANT RETURN DONE, BUT WE HAD [p. 79] THE SEARCH WARRANT SEALED BECAUSE WE WERE STILL IN THE MIDST OF AN INVESTIGATION SO IT

WAS AT THAT POINT IN TIME I TOLD HIM TO GO SEE JUDGE OKI WHO HAD SIGNED THE ORIGINAL SEARCH WARRANT SINCE HE WAS UNABLE TO LOCATE ANY CASE NUMBER TO GET ON CALENDAR.

Q. AND DID YOU HAVE A SUBSEQUENT COMMUNICATION WITH HIM WHEN HE INDICATED HE ATTEMPTED TO CONTACT JUDGE OKI?

A. YES.

Q. WHAT DID HE SAY TO YOU, AND WHAT DID YOU SAY TO HIM?

A. HE SAID JUDGE OKI WAS ON VACATION AND THAT HE WOULD BE GONE A WEEK OR TWO AND IT WAS AT THAT POINT I TOLD HIM THAT I DIDN'T KNOW WHAT MORE I COULD DO TO HELP HIM AND HE MAY WANT TO RETAIN AN ATTORNEY TO HELP HIM GET A COURT ORDER TO GET HIS PROPERTY.

Q. IS THAT WHEN YOU INFORMED YOUR SERGEANT THAT MAYBE MR. OKI – EXCUSE ME – MR. PERKINS MIGHT BE CONTACTING THE SERGEANT?

A. I BELIEVE SO.

Q. AND IS THAT BECAUSE – STRIKE THAT.

IN ANY CONVERSATION THAT YOU HAD WITH MR. PERKINS PRIOR TO THE FILING OF THIS CASE, AND

* * *

[PROOF OF SERVICE Omitted In Printing]

SUPREME COURT OF THE UNITED STATES
OFFICE OF THE CLERK
WASHINGTON, DC 20543-0001

WILLIAM K. SUTER MAY 4, 1998 AREA CODE 202
CLERK OF THE COURT 479-3011

Priscilla F. Slocum
Franscell, Strickland, Roberts and Lawrence
225 S. Lake Avenue, Penthouse
Pasadena, California 91101

97-1230 – City of West Covina v. Lawrence Perkins, et al.

Dear Ms. Slocum:

The Court today entered the following order in the above stated case:

> "The motion of Sixty-seven Cities, Counties and Towns within California for leave to file a brief as amici curiae is granted. The petition for a writ of certiorari is granted."

Enclosed are Memoranda describing the procedures under the Rules, together with a Specification Chart for your use. To further assist you in preparing your case before this Court, a copy of the Guide for Counsel is enclosed.

If you have any questions, please feel free to telephone me.

Very truly yours,

WILLIAM K. SUTER, CLERK

/s/ Sandy Nelsen
Sandy Nelsen
Merits Clerk
(202) 479-3032

Enclosures